

OCCUPATIONS CODE

TITLE 4. PROFESSIONS RELATED TO ANIMALS

CHAPTER 801. VETERINARIANS

SUBCHAPTER A. GENERAL PROVISIONS

Sec. 801.001. SHORT TITLE. This chapter may be cited as the Veterinary Licensing Act.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.002. DEFINITIONS. In this chapter:

(1) "Board" means the State Board of Veterinary Medical Examiners.

(1-a) "Certified veterinary assistant" means a person who has been certified as a certified veterinary assistant by the Texas Veterinary Medical Association and is employed by a licensed veterinarian.

(2) "Compensation" includes a fee, monetary reward, discount, or emolument, whether received directly or indirectly.

(3) "Direct supervision" means supervision of a person by a responsible veterinarian who is physically present on the premises.

(3-a) "Equine dentistry" means any diagnosis, treatment, or surgical procedure performed on the head or oral cavity of an equine animal. The term includes:

(A) any procedure that invades the tissues of the oral cavity, including a procedure to:

- (i) remove sharp enamel projections;
- (ii) treat malocclusions of the teeth;
- (iii) reshape teeth; and
- (iv) extract one or more teeth;

(B) the treatment or extraction of damaged or diseased teeth;

(C) the treatment of diseased teeth through restoration and endodontic procedures;

(D) periodontal treatments, including:

- (i) the removal of calculus, soft deposits,

plaque, and stains above the gum line; and

(ii) the smoothing, filing, and polishing of tooth surfaces; and

(E) dental radiography.

(4) "General supervision" means supervision of a person by a responsible veterinarian who is readily available to communicate with the person.

(4-a) "Immediate supervision" means supervision by a person who is within audible and visual range of both the animal patient and the person under supervision.

(4-b) "Licensed equine dental provider" means a person who holds a license to practice equine dentistry issued under this chapter.

(4-c) "Licensed veterinary technician" means a person licensed as a veterinary technician by the board.

(5) "Practice of veterinary medicine" means:

(A) the diagnosis, treatment, correction, change, manipulation, relief, or prevention of animal disease, deformity, defect, injury, or other physical condition, including the prescription or administration of a drug, biologic, anesthetic, apparatus, or other therapeutic or diagnostic substance or technique;

(B) the representation of an ability and willingness to perform an act listed in Paragraph (A);

(C) the use of a title, a word, or letters to induce the belief that a person is legally authorized and qualified to perform an act listed in Paragraph (A); or

(D) the receipt of compensation for performing an act listed in Paragraph (A).

(6) "Veterinarian" means a person licensed by the board under this chapter to practice veterinary medicine.

(6-a) "Veterinary assistant" means a person who:

(A) is employed by a licensed veterinarian;

(B) performs tasks related to animal care; and

(C) is not a certified veterinary assistant or a licensed veterinary technician.

(6-b) "Veterinary medical facility" means a location,

including a building, portion of a building, or vehicle, in which the practice of veterinary medicine normally takes place or is provided.

(6-c) "Management services organization" means a business entity that provides management services to a veterinary medical facility, as defined by board rule.

(7) "Veterinary medicine" includes veterinary surgery, reproduction and obstetrics, dentistry, ophthalmology, dermatology, cardiology, and any other discipline or specialty of veterinary medicine.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 1, eff. September 1, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. [1312](#)), Sec. 1, eff. September 1, 2013.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 1, eff. September 1, 2025.

Sec. 801.003. APPLICATION OF SUNSET ACT. The State Board of Veterinary Medical Examiners is subject to Chapter [325](#), Government Code (Texas Sunset Act). Unless continued in existence as provided by that chapter, the board is abolished September 1, 2033.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 1, eff. September 1, 2005.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. [319](#)), Sec. 3, eff. September 1, 2017.

Acts 2021, 87th Leg., R.S., Ch. 850 (S.B. [713](#)), Sec. 4.02(a), eff. June 16, 2021.

Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 1, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 937 (H.B. [1545](#)), Sec. 3.01(a), eff. June 20, 2025.

Sec. 801.004. APPLICATION OF CHAPTER. This chapter does not apply to:

(1) the treatment or care of an animal in any manner by the owner of the animal, an employee of the owner, or a designated caretaker of the animal, unless the ownership, employment, or designation is established with the intent to violate this chapter;

(2) a person who performs an act prescribed by the board as an accepted livestock management practice, including:

(A) castrating a male animal raised for human consumption;

(B) docking or earmarking an animal raised for human consumption;

(C) dehorning cattle;

(D) aiding in the nonsurgical birth process of a large animal, as defined by board rule;

(E) treating an animal for disease prevention with a nonprescription medicine or vaccine;

(F) branding or identifying an animal in any manner;

(G) artificially inseminating an animal, including training, inseminating, and compensating for services related to artificial insemination; and

(H) shoeing a horse;

(3) the performance of a cosmetic or production technique to reduce injury in poultry intended for human consumption;

(4) the performance of a duty by a veterinarian's employee if:

(A) the duty involves food production animals;

(B) the duty does not involve diagnosis, prescription, or surgery;

(C) the employee is under the direction and general supervision of the veterinarian; and

(D) the veterinarian is responsible for the employee's performance;

(5) the performance of an act by a person who is a full-time student of an accredited college of veterinary medicine

if the act is performed under the direct supervision of a veterinarian;

(6) an animal shelter employee who performs euthanasia in the course and scope of the person's employment if the person has successfully completed training in accordance with Chapter 829, Health and Safety Code;

(7) a person who is engaged in a recognized state-federal cooperative disease eradication or control program or an external parasite control program while the person is performing official duties required by the program;

(8) a person who, without expectation of compensation, provides emergency care in an emergency or disaster;

(9) a consultation given to a veterinarian in this state by a person who:

(A) resides in another state; and

(B) is lawfully qualified to practice veterinary medicine under the laws of that state; or

(10) a licensed health care professional who, without expectation of compensation and under the direct supervision of a veterinarian on staff, provides treatment or care to an animal owned by or in the possession, control, or custody of an entity accredited by the Association of Zoos and Aquariums or one of the following organizations that has a veterinarian on staff:

(A) the Global Federation of Animal Sanctuaries;
or

(B) the Zoological Association of America.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 1331 (S.B. 1562), Sec. 4, eff. September 1, 2007.

Acts 2011, 82nd Leg., R.S., Ch. 411 (S.B. 811), Sec. 1, eff. September 1, 2011.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 4, eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 717 (S.B. 721), Sec. 1, eff. June 12, 2017.

For expiration of this subchapter, see Section 801.026.

SUBCHAPTER A-1. TEMPORARY REGULATION BY TEXAS DEPARTMENT OF
LICENSING AND REGULATION

Sec. 801.021. DEFINITIONS. In this subchapter:

(1) "Commission" means the Texas Commission of Licensing and Regulation.

(2) "Department" means the Texas Department of Licensing and Regulation.

Added by Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 2, eff. September 1, 2023.

Sec. 801.022. TEMPORARY ADMINISTRATION OF CHAPTER BY DEPARTMENT; RULES. (a) Notwithstanding any other law, the department shall assume all policy-making powers of the board and administer this chapter. The department may contract as necessary to administer this chapter.

(b) A power or duty granted to the board under this chapter is a power or duty of the executive director of the department, the department, or the commission, as applicable.

(c) The commission or executive director of the department may delegate, or withdraw any delegation of, any power or duty under this chapter to the board or the executive director of the board. The delegation or withdrawal of delegation must be in writing.

(d) Except as provided by Section [801.024\(c\)](#), the commission shall adopt all rules necessary to implement this chapter.

(e) Not later than December 31, 2026, the department shall conduct a review under Section [2001.039](#), Government Code, of each rule under 22 T.A.C. Part 24. In conducting the review under this subsection, the department shall ensure that license holders and the public have a meaningful opportunity to provide input and recommend changes to the rules.

(f) The department shall propose necessary amendments to a rule, or the repeal of a rule, for which the department determines the board lacks a sufficient reason or authority to adopt or

enforce.

(g) For any rulemaking or contested case for which an expert witness is necessary, the commission or department, as applicable, may have a member of the board who is a veterinarian licensed in good standing in this state serve as the expert witness.

Added by Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 2, eff. September 1, 2023.

Sec. 801.023. SEPARATION OF ADMINISTRATIVE FUNCTIONS OF BOARD. (a) The executive director of the department shall direct and may dismiss the board's executive director, and has authority relating to personnel actions as if the board's executive director were an employee of the department. The presiding officer of the commission shall appoint a replacement executive director of the board if necessary.

(b) Subject to Subsection (a), the executive director of the board is responsible for the administration of licensing, enforcement, financial services, human resources, and workforce development duties of the board, including:

- (1) accounts payable and accounts receivable;
- (2) budgeting, inventory, and asset management;
- (3) payroll;
- (4) personnel and labor issues;
- (5) purchasing;
- (6) recruitment, evaluation, selection, training, and promotion of personnel;
- (7) submitting required reports regarding finances, performance measures, strategic planning, legislative appropriations requests, operating budgets, and similar information as required by law;
- (8) legal support services, including responding to requests for public information; and
- (9) information technology and support.

(c) If the department provides any of the functions listed in Subsection (b), the board shall reimburse the department for administrative costs incurred in providing those services.

Added by Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 2,

eff. September 1, 2023.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 2, eff. September 1, 2025.

Sec. 801.024. ADVISORY BOARD. (a) Notwithstanding Subchapter D, the board is an advisory board to the department.

(b) The board, the equine dental provider advisory committee, and any advisory committee appointed under Section [801.163](#) shall provide advice and recommendations to the department on technical matters relevant to the administration of this chapter.

(c) The board shall adopt rules relating to the scope of practice of or a health-related standard of care for the practice of the profession of veterinary medicine.

(d) The commission shall review each rule adopted under Subsection (c) and, if the commission determines that the rule is not authorized by this chapter or other law or is an unauthorized anticompetitive rule, issue an order stating that determination. A rule for which an order is issued under this subsection may not take effect or be enforced.

Added by Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 2, eff. September 1, 2023.

Sec. 801.025. CONFLICT WITH OTHER LAW.

(a) Notwithstanding Section [51.003](#), to the extent of any conflict between this chapter and Chapter [51](#), this chapter controls.

(b) To the extent of any conflict between this subchapter and another provision of this chapter, this subchapter controls.

Added by Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 2, eff. September 1, 2023.

Sec. 801.026. EXPIRATION. This subchapter expires September 1, 2027.

Added by Acts 2023, 88th Leg., R.S., Ch. 1103 (S.B. [1414](#)), Sec. 2, eff. September 1, 2023.

SUBCHAPTER B. STATE BOARD OF VETERINARY MEDICAL EXAMINERS

Sec. 801.051. BOARD; MEMBERSHIP. (a) The State Board of Veterinary Medical Examiners consists of nine members appointed by the governor with the advice and consent of the senate as follows:

(1) five veterinarian members, including:

(A) one veterinarian member who is associated with an animal shelter; and

(B) one veterinarian member who has at least three years of experience practicing veterinary medicine in this state on horses, livestock, or other large animals;

(2) one licensed veterinary technician member; and

(3) three members who represent the public.

(b) The board may include not more than one veterinarian member who is a faculty member of a college of veterinary medicine.

(c) Appointments to the board shall be made without regard to the race, color, disability, sex, religion, age, or national origin of the appointee.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 5, eff. September 1, 2017.

Sec. 801.052. MEMBERSHIP ELIGIBILITY. (a) A person is eligible for appointment as a veterinarian member of the board if the person:

(1) has resided and practiced veterinary medicine in this state for the six years preceding the date of appointment;

(2) is of good repute; and

(3) is not the holder of a special license issued under Section 801.256.

(b) A person is not eligible for appointment as a public member of the board if the person:

(1) is licensed by an occupational regulatory agency in the field of health care;

(2) is employed by or participates in the management of a business entity or other organization that:

- (A) provides health care services;
- (B) sells, manufactures, or distributes health care supplies or equipment; or
- (C) is regulated by or receives funds from the board;

(3) owns or controls, directly or indirectly, more than a 10 percent interest in a business entity or other organization that:

- (A) provides health care services;
- (B) sells, manufactures, or distributes health care supplies or equipment; or
- (C) is regulated by or receives funds from the board; or

(4) uses or receives a substantial amount of tangible goods, services, or funds from the board, other than compensation or reimbursement authorized by law for board membership, attendance, or expenses.

(c) A person is not eligible for appointment as a public member of the board if the person's spouse:

(1) is licensed by an occupational regulatory agency in the field of veterinary medicine;

(2) is employed by or participates in the management of a business entity or other organization that:

- (A) provides veterinary health care services;
- (B) sells, manufactures, or distributes veterinary health care supplies or equipment; or
- (C) is regulated by or receives funds from the board;

(3) owns or controls, directly or indirectly, more than a 10 percent interest in a business entity or other organization that:

- (A) provides veterinary health care services;
- (B) sells, manufactures, or distributes veterinary health care supplies or equipment; or
- (C) is regulated by or receives funds from the board; or

(4) uses or receives a substantial amount of tangible

goods, services, or funds from the board, other than compensation or reimbursement authorized by law for board membership, attendance, or expenses.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 2, eff. September 1, 2005.

Sec. 801.053. MEMBERSHIP AND EMPLOYEE RESTRICTIONS. (a) In this section, "Texas trade association" means a cooperative and voluntarily joined statewide association of business or professional competitors in this state designed to assist its members and its industry or profession in dealing with mutual business or professional problems and in promoting their common interest.

(b) A person may not be a member of the board and may not be an employee of the board employed in a "bona fide executive, administrative, or professional capacity," as that phrase is used for purposes of establishing an exemption to the overtime provisions of the federal Fair Labor Standards Act of 1938 (29 U.S.C. Section 201 et seq.), if:

(1) the person is an officer, employee, or paid consultant of a Texas trade association in the field of health care; or

(2) the person's spouse is an officer, manager, or paid consultant of a Texas trade association in the field of veterinary medicine.

(c) A person may not be a member of the board or act as the general counsel to the board if the person is required to register as a lobbyist under Chapter 305, Government Code, because of the person's activities for compensation on behalf of a profession related to the operation of the board.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 3, eff. September 1, 2005.

Sec. 801.054. TERMS; VACANCY. (a) Members of the board are appointed for staggered six-year terms.

(b) If a vacancy occurs because of the death or resignation of a board member, the governor shall appoint a replacement to fill the unexpired term.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.055. OFFICERS. (a) The governor shall designate a veterinarian member of the board as the presiding officer of the board to serve in that capacity at the pleasure of the governor.

(b) At the first meeting of the board each year, the board shall elect from its members any other officer the board considers necessary or convenient.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 4, eff. September 1, 2005.

Acts 2023, 88th Leg., R.S., Ch. 259 (S.B. 1850), Sec. 1, eff. September 1, 2023.

Sec. 801.056. GROUNDS FOR REMOVAL. (a) It is a ground for removal from the board that a member:

(1) does not have at the time of taking office the qualifications required by Section 801.052;

(2) does not maintain during service on the board the qualifications required by Section 801.052;

(3) is ineligible for membership under Section 801.052 or 801.053;

(4) cannot, because of illness or disability, discharge the member's duties for a substantial part of the member's term; or

(5) is absent from more than half of the regularly scheduled board meetings that the member is eligible to attend during a calendar year without an excuse approved by a majority vote of the board.

(b) The validity of an action of the board is not affected by the fact that it is taken when a ground for removal of a board member

exists.

(c) If the executive director has knowledge that a potential ground for removal exists, the executive director shall notify the presiding officer of the board of the potential ground. The presiding officer shall then notify the governor and the attorney general that a potential ground for removal exists. If the potential ground for removal involves the presiding officer, the executive director shall notify the next highest ranking officer of the board, who shall then notify the governor and the attorney general that a potential ground for removal exists.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 5, eff. September 1, 2005.

Sec. 801.057. TRAINING. (a) A person who is appointed to and qualifies for office as a member of the board may not vote, deliberate, or be counted as a member in attendance at a meeting of the board until the person completes a training program that complies with this section.

(b) The training program must provide the person with information regarding:

(1) the law governing board operations;

(2) the programs, functions, rules, and budget of the board;

(3) the scope of and limitations on the rulemaking authority of the board;

(4) the types of board rules, interpretations, and enforcement actions that may implicate federal antitrust law by limiting competition or impacting prices charged by persons engaged in a profession or business the board regulates, including rules, interpretations, and enforcement actions that:

(A) regulate the scope of practice of persons in a profession or business the board regulates;

(B) restrict advertising by persons in a profession or business the board regulates;

(C) affect the price of goods or services

provided by persons in a profession or business the board regulates; or

(D) restrict participation in a profession or business the board regulates;

(5) the results of the most recent formal audit of the board;

(6) the requirements of:

(A) laws relating to open meetings, public information, administrative procedure, and disclosing conflicts of interest; and

(B) other laws applicable to members of the board in performing their duties; and

(7) any applicable ethics policies adopted by the board or the Texas Ethics Commission.

(c) A person appointed to the board is entitled to reimbursement, as provided by the General Appropriations Act, for the travel expenses incurred in attending the training program regardless of whether the attendance at the program occurs before or after the person qualifies for office.

(d) The executive director of the board shall create a training manual that includes the information required by Subsection (b). The executive director shall distribute a copy of the training manual annually to each board member. On receipt of the training manual, each board member shall sign and submit to the executive director a statement acknowledging receipt of the training manual.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 6, eff. September 1, 2005.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 6, eff. September 1, 2017.

Sec. 801.058. PER DIEM; REIMBURSEMENT. A board member is entitled to receive:

(1) a per diem, as set by legislative appropriation, for each day that the member engages in board business; and

(2) reimbursement for travel expenses, as prescribed by the General Appropriations Act, including expenses for meals and lodging.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.059. OATH OF OFFICE. Before assuming the duties of office, each board member shall file with the secretary of state a signed copy of the constitutional oath of office taken by the member.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

SUBCHAPTER C. EXECUTIVE DIRECTOR AND PERSONNEL

Sec. 801.101. EXECUTIVE DIRECTOR. The board shall appoint an executive director. The executive director serves at the will of the board.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 3, eff. September 1, 2025.

Sec. 801.102. EXECUTIVE DIRECTOR POWERS AND DUTIES.
(a) The executive director shall:

- (1) perform any duties assigned by the board and other duties specified by law;
- (2) administer and enforce the board's programs; and
- (3) issue licenses regulated by the board.

(b) The executive director may:

- (1) delegate any power or duty assigned to the executive director unless prohibited by law; and
- (2) issue emergency orders and cease and desist orders as provided by this chapter.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2003, 78th Leg., ch. 285, Sec. 25, 31(39), eff. Sept. 1, 2003.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 4, eff.

September 1, 2025.

Sec. 801.103. PERSONNEL. The board may employ personnel to administer this chapter and may prescribe their duties and compensation, subject to the personnel policies and budget approved by the board.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 5, eff. September 1, 2025.

Sec. 801.104. DIVISION OF RESPONSIBILITIES. The board shall develop and implement policies that clearly separate the policymaking responsibilities of the board and the management responsibilities of the executive director and the staff of the board.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 7, eff. September 1, 2005.

Sec. 801.105. QUALIFICATIONS AND STANDARDS OF CONDUCT INFORMATION. The board shall provide as often as necessary to its members and employees information regarding their:

(1) qualifications for office or employment under this chapter; and

(2) responsibilities under applicable laws relating to standards of conduct for state officers or employees.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.106. CAREER LADDER PROGRAM; PERFORMANCE EVALUATIONS. (a) The executive director or the executive director's designee shall develop an intra-agency career ladder program. The program must require intra-agency postings of all nonentry level positions concurrently with any public posting.

(b) The executive director or the executive director's designee shall develop a system of annual performance evaluations

based on measurable job tasks. All merit pay authorized by the executive director must be based on the system established under this subsection.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.107. EQUAL EMPLOYMENT OPPORTUNITY POLICY; REPORT.

(a) The executive director or the executive director's designee shall prepare and maintain a written policy statement to ensure implementation of an equal employment opportunity program under which all personnel transactions are made without regard to race, color, disability, sex, religion, age, or national origin. The policy statement must include:

(1) personnel policies, including policies relating to recruitment, evaluation, selection, application, training, and promotion of personnel, that are in compliance with Chapter 21, Labor Code;

(2) a comprehensive analysis of the board workforce that meets federal and state guidelines;

(3) procedures by which a determination can be made of the significant underuse in the board workforce of all persons for whom federal or state guidelines encourage a more equitable balance; and

(4) reasonable methods to appropriately address those areas of significant underuse.

(b) A policy statement prepared under Subsection (a) must be:

(1) prepared to cover an annual period;

(2) updated annually;

(3) reviewed by the Commission on Human Rights for compliance with Subsection (a)(1); and

(4) filed with the governor.

(c) The governor shall deliver a biennial report to the legislature based on the information received under Subsection (b). The report may be made separately or as part of other biennial reports to the legislature.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

SUBCHAPTER D. BOARD POWERS AND DUTIES

Sec. 801.150. GENERAL POWERS AND DUTIES OF BOARD. The board shall:

- (1) supervise the executive director's administration of this chapter;
- (2) formulate policy objectives for the board; and
- (3) approve the board's operating budget and requests for legislative appropriations.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 6, eff. September 1, 2025.

Sec. 801.151. RULES. (a) The board shall adopt rules as necessary to administer this chapter.

(b) The board shall adopt rules of professional conduct appropriate to establish and maintain a high standard of integrity, skills, and practice in the veterinary medicine profession.

(c) The board shall adopt rules to:

- (1) protect the public;
- (2) ensure that alternate therapies, including ultrasound diagnosis and therapy, magnetic field therapy, holistic medicine, homeopathy, chiropractic treatment, acupuncture, and laser therapy, are performed only by a veterinarian or under the supervision of a veterinarian;
- (3) ensure that equine dentistry is performed only by a veterinarian who is active and in good standing or by a licensed equine dental provider who is active and in good standing under the appropriate level of supervision of a veterinarian who is active and in good standing and who has established a veterinarian-client-patient relationship with the owner or other caretaker of an animal in accordance with Section [801.351](#); and
- (4) provide for the licensing and regulation of licensed veterinary technicians.

(d) The board may adopt rules regarding the work of a person who works under the supervision of a veterinarian.

(e) The board shall adopt rules to implement a jurisprudence examination for licensed equine dental providers and licensed

veterinary technicians, including rules relating to the development and administration of the examination, examination fees, guidelines for reexamination, examination grading, and provision of notice of examination results.

(f) The board may not adopt rules that unreasonably restrict the selection by the owner or other caretaker of an animal of a licensed equine dental provider who is in good standing to provide equine dental services.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 2, eff. September 1, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. [1312](#)), Sec. 2, eff. September 1, 2013.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 7, eff. September 1, 2025.

Sec. 801.152. EXCEPTIONS TO RULE. (a) The board may consider an exception to a rule adopted by the board on the request of a person subject to board regulation.

(b) After notice and hearing, the board may approve an exception to a board rule.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.153. RULES RESTRICTING ADVERTISING OR COMPETITIVE BIDDING. (a) The board may not adopt a rule restricting advertising or competitive bidding by a person regulated by the board except to prohibit a false, misleading, or deceptive practice by that person.

(b) In its rules to prohibit a false, misleading, or deceptive practice, the board may not include a rule that:

(1) restricts the person's use of any advertising medium;

(2) restricts the person's personal appearance or the use of the person's voice in an advertisement;

(3) relates to the size or duration of an advertisement by the person; or

(4) restricts the person's advertisement under a trade name.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.154. FEES. The board by rule shall set fees in amounts that are reasonable and necessary so that the fees, in the aggregate, cover the costs of administering this chapter.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 3, eff. September 1, 2011.

Acts 2015, 84th Leg., R.S., Ch. 448 (H.B. 7), Sec. 31(1)(6), eff. September 1, 2015.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 7, eff. September 1, 2017.

Sec. 801.155. PAYMENT OF ADMINISTRATIVE COSTS. Costs incurred by the board in administering this chapter, including the compensation and expenses of board members and employees, may be paid only from fees collected under this chapter.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.156. DATA; PUBLIC ACCESS. (a) The board shall maintain an electronic system allowing it to provide accurate reporting of information relating to license holders and applicants, complaints, enforcement actions, investigations, and inspections.

(b) The board shall provide on its public-facing website:

(1) a feature allowing users to verify a license holder's license status, determine whether the license holder is currently subject to disciplinary action, and review relevant disciplinary orders; and

(2) data, updated at least quarterly, summarizing the number, type, and disposition of complaints received during the fiscal year.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 4, eff. September 1, 2011.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 8, eff. September 1, 2025.

Sec. 801.157. PEER ASSISTANCE PROGRAM. (a) The board shall establish or approve a peer assistance program for veterinarians. The peer assistance program must comply with Chapter 467, Health and Safety Code.

(b) The board may order a veterinarian who is subject to disciplinary action under this chapter based on a finding that the veterinarian is impaired by chemical dependency or mental illness to submit to care, counseling, or treatment through the peer assistance program.

(c) The board shall provide information on its website directing licensed veterinarians to approved peer assistance programs.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 411 (S.B. 811), Sec. 2, eff. September 1, 2011.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 9, eff. September 1, 2025.

Sec. 801.158. SUBPOENA. (a) The board or executive director may request and, if necessary, compel by subpoena:

(1) the attendance of witnesses for examination under oath; and

(2) the production for inspection or copying of books, accounts, records, papers, correspondence, documents, and other evidence relevant to an investigation of an alleged violation of this chapter.

(b) The board, acting through the attorney general, may bring an action to enforce a subpoena issued under Subsection (a) against a person, including a corporation, organization, business trust, estate, trust, partnership, association, or other legal entity, who fails to comply with the subpoena.

(c) Venue for an action brought under Subsection (b) is in a district court in:

(1) Travis County; or

(2) any county in which the board may hold a hearing.

(d) The court shall order compliance with the subpoena if the court finds that good cause exists to issue the subpoena.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1420, Sec. 14.421(a), eff. Sept. 1, 2001.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 10, eff. September 1, 2025.

Sec. 801.159. BOARD DUTIES REGARDING COMPLAINTS. (a) The board by rule shall:

(1) adopt a form to standardize information relating to complaints filed with the board; and

(2) prescribe information to be provided to a person when the person files a complaint with the board.

(b) The board shall provide reasonable assistance to a person who wishes to file a complaint with the board.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.160. ANNUAL REPORT. (a) The board shall file annually with the governor and the presiding officer of each house of the legislature a complete and detailed written report accounting for all funds received and disbursed by the board during the preceding fiscal year.

(b) The report must be in the form and reported in the time provided by the General Appropriations Act.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.161. USE OF TECHNOLOGY. (a) The board shall implement a policy requiring the board to use appropriate technological solutions to improve the board's ability to perform its functions. The policy must ensure that the public is able to interact with the board on the Internet.

(b) The board may by rule require an applicant or license holder to provide an e-mail address for purposes of receiving correspondence. An e-mail address provided under this section is confidential and is not subject to disclosure under Chapter 552, Government Code.

(c) Notwithstanding any other law, the board may by rule provide that service of any notice, order, or pleading required under this chapter or under Chapter 2001, Government Code, may be made electronically to the e-mail address provided pursuant to Subsection (b).

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 8, eff. September 1, 2005.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 11, eff. September 1, 2025.

Sec. 801.162. ALTERNATIVE RULEMAKING AND DISPUTE RESOLUTION PROCEDURES. (a) The board shall develop and implement a policy to encourage the use of:

(1) negotiated rulemaking procedures under Chapter 2008, Government Code, for the adoption of board rules; and

(2) appropriate alternative dispute resolution procedures under Chapter 2009, Government Code, to assist in the resolution of internal and external disputes under the board's jurisdiction.

(b) The board's procedures relating to alternative dispute resolution must conform, to the extent possible, to any model guidelines issued by the State Office of Administrative Hearings for the use of alternative dispute resolution by state agencies.

(c) The board shall designate a trained person to:

(1) coordinate the implementation of the policy adopted under Subsection (a);

(2) serve as a resource for any training needed to implement the procedures for negotiated rulemaking or alternative dispute resolution; and

(3) collect data concerning the effectiveness of those procedures, as implemented by the board.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 8, eff. September 1, 2005.

Sec. 801.163. ADVISORY COMMITTEES. (a) The board may appoint advisory committees to perform advisory functions as assigned by the board.

(b) An advisory committee shall provide independent expertise on board functions and policies, but may not be involved in setting board policy.

(c) The board shall adopt rules regarding the purpose, structure, and use of an advisory committee, including rules on:

(1) the purpose, role, responsibility, and goal of an advisory committee;

(2) the size and quorum requirements for an advisory committee;

(3) the composition and representation of an advisory committee;

(4) the qualifications of advisory committee members, including any experience requirements or requirements that members represent specific geographic regions of the state;

(5) the appointment procedures for an advisory committee;

(6) the terms of service for advisory committee members;

(7) the training requirements for advisory committee members, if necessary;

(8) the method the board will use to receive public input on issues addressed by an advisory committee; and

(9) the development of board policies and procedures to ensure that an advisory committee meets the requirements for open meetings under Chapter 551, Government Code, including notice requirements.

(d) Notwithstanding any other law, Chapter 2110, Government Code, does not apply to an advisory committee appointed under this section.

Added by Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. 1312), Sec. 3, eff. September 1, 2013.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 12, eff. September 1, 2025.

Sec. 801.1631. INSPECTIONS AND INVESTIGATIONS. (a) The board may conduct inspections or investigations as necessary to enforce the laws administered by the board.

(b) To perform its functions under Subsection (a), the board may, during reasonable business hours:

(1) enter a veterinary medical facility or other business premises of a person regulated by the board, or of a person suspected of being in violation of, or threatening to violate, a law administered by the board, or a rule or order of the board or executive director; and

(2) examine and copy records pertinent to the inspection or investigation.

(c) The board may take a disciplinary action authorized by this chapter for a violation identified during an inspection.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 13, eff. September 1, 2025.

Sec. 801.164. RISK-BASED INSPECTIONS. (a) The board shall prioritize inspections relating to key risk factors identified by the board, including previous violations by the license holder or information concerning a veterinarian's use, handling, prescribing, dispensing, or delivery of controlled substances.

(b) The board may use alternative inspection methods, including videoconference or similar technology, instead of conducting an in-person inspection in circumstances the board considers appropriate.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. [319](#)), Sec. 8, eff. September 1, 2017.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 14, eff. September 1, 2025.

Sec. 801.165. REFUND. (a) Subject to Subsection (b), if

the board finds that the license holder has committed an act that is grounds for license denial or disciplinary action under Section 801.402, the board or executive director may order a license holder to pay a refund to a consumer as provided in an agreed settlement, default order, or board order instead of or in addition to imposing an administrative penalty or sanction.

(b) The amount of a refund ordered under this section may not exceed the amount the consumer paid to the license holder for a service regulated by the board, and may not require payment of other damages or estimate harm.

(c) This section does not grant the board jurisdiction over a complaint based solely on the cost of a veterinary service.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 15, eff. September 1, 2025.

Sec. 801.166. RECIPROCITY AGREEMENTS. The board, with approval of the governor, may enter into an agreement with another state to allow for licensing by reciprocity.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 16, eff. September 1, 2025.

SUBCHAPTER E. PUBLIC ACCESS AND INFORMATION; COMPLAINT PROCEDURES

Sec. 801.201. PUBLIC INTEREST INFORMATION. (a) The board shall prepare information of public interest describing the functions of the board and the procedures by which complaints are filed with and resolved by the board.

(b) The board shall make the information available to the public and appropriate state agencies.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.202. PUBLIC PARTICIPATION. (a) The board shall develop and implement policies that provide the public with a reasonable opportunity to appear before the board and to speak on any issue under the board's jurisdiction.

(b) The board shall prepare and maintain a written plan that describes how a person who does not speak English may be provided

reasonable access to the board's programs.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.203. COMPLAINTS. (a) The board by rule shall establish methods by which consumers and service recipients are notified of the name, mailing address, and telephone number of the board for the purpose of directing complaints to the board.

(b) The board shall list with its regular telephone number any toll-free telephone number established under other state law for presenting a complaint about a license holder.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 5, eff. September 1, 2011.

Sec. 801.204. RECORDS OF COMPLAINTS. (a) The board shall maintain a system to promptly and efficiently act on complaints filed with the board. The board shall maintain information about parties to the complaint, the subject matter of the complaint, a summary of the results of the review or investigation of the complaint, and its disposition.

(b) The board shall make information available describing its procedures for complaint investigation and resolution.

(c) The board shall periodically notify the complaint parties of the status of the complaint until final disposition.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 9, eff. September 1, 2005.

Sec. 801.205. GENERAL RULES REGARDING COMPLAINT INVESTIGATION AND DISPOSITION. The board shall adopt rules relating to the investigation and disposition of complaints filed with the board. The rules must:

- (1) distinguish between categories of complaints;
- (2) ensure that complaints are not dismissed without appropriate consideration; and

(3) require that the board be advised of a complaint that is dismissed.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 9, eff. September 1, 2017.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 17, eff. September 1, 2025.

Sec. 801.2051. PRIORITY OF COMPLAINTS. The board shall assign priorities and investigate complaints based on risk posed to the public by the conduct alleged in the complaint. The board shall prioritize complaints regarding persons engaged in the practice of veterinary medicine without a license.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 10, eff. September 1, 2005.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 18, eff. September 1, 2025.

Sec. 801.2052. DISMISSAL OF BASELESS OR UNFOUNDED COMPLAINT. (a) If the board determines at any time that an allegation or complaint submitted by a person is baseless, unfounded, or does not fall within the board's regulatory jurisdiction, the board shall dismiss the complaint.

(b) The board shall adopt rules to implement this section and establish criteria for determining that a complaint is baseless or unfounded.

Added by Acts 2023, 88th Leg., R.S., Ch. 60 (S.B. 1523), Sec. 1, eff. September 1, 2023.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 19, eff. September 1, 2025.

Sec. 801.2055. COMPLAINTS REQUIRING MEDICAL EXPERTISE. (a) A complaint that requires medical expertise to review must be reviewed by one or more veterinarians designated by the board. The

veterinarian reviewers shall determine whether to dismiss the complaint or refer it to an informal proceeding under Section [801.408](#).

(b) If the veterinarian reviewers determine to:

(1) dismiss the complaint, the dismissal must be approved by the board at a public meeting; or

(2) refer the complaint to an informal proceeding, the complaint is referred to an informal proceeding under Section [801.408](#).

(c) If the board designates more than one veterinarian reviewer and the reviewers do not agree to dismiss or refer the complaint to an informal proceeding, the complaint is referred to an informal proceeding under Section [801.408](#).

(c-1) The board may contract with a qualified individual to assist in reviewing or investigating complaints requiring medical expertise. Except for an act involving fraud, conspiracy, or malice, an individual with whom the board contracts under this subsection is immune from liability or from disciplinary action under this chapter and may not be subject to a suit for damages for any act arising from the performance of the individual's duties in:

(1) participating in an informal conference to determine the facts of a complaint;

(2) offering an expert opinion or technical guidance on an alleged violation of this chapter or of a rule or order issued by the board or executive director;

(3) testifying at a hearing regarding a complaint; or

(4) making an evaluation, report, or recommendation regarding a complaint.

(d) A veterinarian board member who reviews a complaint under this section may not deliberate or vote in any subsequent disciplinary proceeding related to the complaint.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 10, eff. September 1, 2005.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. [319](#)), Sec. 10, eff. September 1, 2017.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 20, eff.

September 1, 2025.

Sec. 801.2056. COMPLAINTS NOT REQUIRING MEDICAL EXPERTISE. The board shall adopt rules relating to the evaluation and disposition of complaints not requiring medical expertise.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 10, eff. September 1, 2005.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 6, eff. September 1, 2011.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 21, eff. September 1, 2025.

Sec. 801.207. CONFIDENTIALITY. (a) Except as otherwise provided by this section, a complaint and investigation concerning a person to whom this chapter applies, and all information and materials subpoenaed or compiled by the board in connection with the complaint and investigation, are confidential and not subject to:

- (1) disclosure under Chapter 552, Government Code; or
- (2) disclosure, discovery, subpoena, or other means of legal compulsion for their release to any person.

(b) Notwithstanding Subsection (a), the board may disclose information regarding a complaint or investigation to:

- (1) a person providing testimony or review on the board's behalf in a disciplinary proceeding;
- (2) a respondent or the respondent's authorized representative;
- (3) a professional licensing, credentialing, or disciplinary entity;
- (4) a peer assistance program approved by the board pursuant to Section 801.157;
- (5) a law enforcement agency; or
- (6) a person engaged in bona fide research, if all individual-identifying information has been deleted.

(b-1) Not later than the 14th day before the date of an informal proceeding under Section 801.408, the board shall provide

to the license holder who is the subject of the complaint a copy of the record of any review conducted under Section 801.2055 of a complaint requiring medical expertise. The board shall redact the name of each veterinarian who conducted the review.

(c) Except as provided by Subsection (b-1), the board shall protect the identity of a complainant to the extent possible.

(d) Not later than the 30th day after the date of receipt of a written request from a license holder who is the subject of a formal complaint initiated and filed under this subchapter or from the license holder's counsel of record, and subject to any other privilege or restriction set forth by rule, statute, or legal precedent, and unless good cause is shown for delay, the board shall provide the license holder with access to all information in its possession that the board intends to offer into evidence in presenting its case in chief at the contested hearing on the complaint. The board is not required to provide:

- (1) a board investigative report or memorandum;
- (2) the identity of a nontestifying complainant; or
- (3) attorney-client communications, attorney work product, or other materials covered by a privilege recognized by the Texas Rules of Civil Procedure or the Texas Rules of Evidence.

(e) Furnishing information under Subsection (d) does not constitute a waiver of privilege or confidentiality under this chapter or other applicable law.

(f) The board may not be compelled to release or disclose complaint and investigation information or materials to a person listed in Subsection (b) if the board has not issued a notice of alleged violation related to the information or materials.

(g) Notices of alleged violation and disciplinary orders, including warnings and reprimands, issued by the board are not confidential and are subject to disclosure in accordance with Chapter 552, Government Code.

(h) Notwithstanding any other provision of this section, if an investigation would be jeopardized by the disclosure of information relating to a complaint or investigation, the board may temporarily withhold or otherwise refrain from disclosing to any person any information or materials that the board would otherwise

be required to disclose.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 11, eff. September 1, 2017.

Acts 2021, 87th Leg., R.S., Ch. 419 (H.B. 3442), Sec. 1, eff. September 1, 2021.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 22, eff. September 1, 2025.

Sec. 801.208. NOTIFICATION TO COMPLAINANT REGARDING COMPLAINT DISPOSITION. (a) The board shall promptly notify a complainant of the final disposition of the complaint, including notice:

- (1) that the complaint was dismissed;
- (2) that a penalty, disciplinary action, or other sanction was imposed; or
- (3) that the complaint was disposed of in another manner and the nature of that disposition.

(b) The board shall include with the notification a copy of any public sanction imposed by the board.

(c) The board shall include in the notification an explanation of each reason for the disposition, including, as applicable, in plain, easily understandable language, each reason the conduct alleged in the complaint did or did not constitute grounds for the imposition of a penalty, disciplinary action, or other sanction.

(d) The notification may not include information that is confidential under Section 801.207.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 12, eff. September 1, 2017.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 23, eff. September 1, 2025.

Sec. 801.209. REQUIREMENTS FOR CERTAIN COMPLAINTS. (a) In this section:

(1) "Anonymous complaint" means a complaint that lacks sufficient information to identify the source or the name of the person who filed the complaint.

(2) "Insurance professional" means a person licensed under Title 13, Insurance Code.

(3) "Insurer" means an insurance company or other entity authorized to engage in the business of insurance under Title 6, Insurance Code.

(b) The board may not accept anonymous complaints.

(c) Notwithstanding any confidentiality requirements under Chapter 552, Government Code, or this chapter, a complaint filed with the board against a license holder by a pharmaceutical company or by an insurance professional or insurer relating to insurance covering veterinary services must include the name and address of the pharmaceutical company, insurance professional, or insurer filing the complaint. Not later than the 15th day after the date the complaint is filed with the board, the board shall notify the license holder who is the subject of the complaint of the name and address of the pharmaceutical company, insurance professional, or insurer who filed the complaint, unless the notice would jeopardize an investigation.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 13, eff. September 1, 2017.

SUBCHAPTER F. LICENSE REQUIREMENTS

Sec. 801.251. LICENSE REQUIRED FOR PRACTICE OF VETERINARY MEDICINE. Except as provided by Section 801.004, a person may not practice, or offer or attempt to practice, veterinary medicine unless the person holds a license to practice veterinary medicine issued under this chapter.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 7, eff. September 1, 2011.

Sec. 801.252. ELIGIBILITY REQUIREMENTS FOR LICENSE TO

PRACTICE VETERINARY MEDICINE. The board shall issue a license to practice veterinary medicine to a person who is qualified to be licensed to practice veterinary medicine under this chapter. A person is qualified to be licensed to practice veterinary medicine if:

- (1) the person has attained the age of majority;
- (2) the person is a graduate of a board-approved school or college of veterinary medicine;
- (3) the person successfully completes the licensing examination for veterinarians conducted by the board; and
- (4) the board does not refuse to issue a license to the person under Section [801.401](#).

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 7, eff. September 1, 2011.

Sec. 801.253. LICENSING EXAMINATIONS FOR VETERINARIANS.

(a) The board shall conduct licensing examinations for veterinarians as provided by board rule.

(b) The board shall provide notice of a licensing examination on its Internet website.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 411 (S.B. [811](#)), Sec. 3, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 8, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 9, eff. September 1, 2011.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 24, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 38(2), eff. September 1, 2025.

Sec. 801.254. CONTENT AND CONDUCT OF EXAMINATION. (a) The board shall conduct, or may contract with a board-approved entity

to conduct, the licensing examination on subjects relating to veterinary medicine, including anatomy, pathology, chemistry, obstetrics, public health, veterinary practice, veterinary jurisprudence, physiology and bacteriology, and other subjects regularly taught in reputable schools of veterinary medicine. In this chapter, a reference to an examination conducted by the board includes an examination conducted by a board-approved entity as permitted by this subsection.

(b) The board may conduct a licensing examination in writing, by a practical demonstration of the applicant's skill, or by a combination of those methods. The board shall arrange for the written portion of the examination, if any, to be validated by an independent testing professional.

(c) To pass the licensing examination, an applicant must demonstrate the standard of proficiency the board determines is essential for a qualified veterinarian.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 11, eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 411 (S.B. 811), Sec. 4, eff. September 1, 2011.

Sec. 801.255. EXAMINATION RESULTS. (a) The board shall notify each examinee of the results of the examination not later than the 30th day after the date the licensing examination is administered. If an examination is graded or reviewed by a national testing service, the board shall notify the examinee of the results of the examination not later than the 14th day after the date the board receives the results from the testing service.

(b) If the notice of the examination results graded or reviewed by a national testing service will be delayed longer than 90 days after the examination date, the board shall notify the examinee of the reason for the delay before the 90th day.

(c) If requested in writing by a person who fails an examination, the board shall provide to the person an analysis of the person's performance on the examination.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.2555. EXAMINATION FEE REFUND. (a) The board shall refund the examination fee paid by an applicant who:

(1) provides advance notice of the applicant's inability to take the examination; or

(2) is unable to take the examination because of an emergency.

(b) The board shall adopt rules that establish the required notification period and the emergency situations that warrant a refund.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 12, eff. September 1, 2005.

Sec. 801.256. SPECIAL LICENSE TO PRACTICE VETERINARY MEDICINE. (a) The board may issue a special license to practice veterinary medicine to an applicant who is:

(1) a member of the faculty or staff of a board-approved veterinary program at an institution of higher education;

(2) a veterinarian employee of the Texas Animal Health Commission;

(3) a veterinarian employee of the Texas Veterinary Medical Diagnostic Laboratory; or

(4) a person licensed to practice veterinary medicine in another jurisdiction, if the board determines that the person's specialty practice is unrepresented or underrepresented in this state.

(b) An applicant is eligible for a special license if:

(1) the applicant:

(A) is at least 21 years of age and a graduate of a board-approved veterinary medicine program at an institution of higher education; or

(B) provides to the board a written affirmation by a person described under Subsection (f) that the applicant meets a critical need for staffing at the person's institution and is certified by a nationally recognized veterinary speciality board or

is eligible for that certification; and

(2) the applicant passes the jurisprudence section of the licensing examination.

(c) The board shall adopt rules relating to the issuance of a special license.

(d) A special license is valid only for the performance of duties within the scope of the special license holder's employment or practice.

(e) The board may suspend or revoke a special license if:

(1) the special license holder's employment is terminated; or

(2) the special license holder practices outside of the scope of the license.

(f) The following people may provide a statement under Subsection (b)(1)(B):

(1) the dean of a board-approved veterinary medicine program at an institution of higher education in this state;

(2) the executive director of the Texas Animal Health Commission; or

(3) the executive director of the Texas Veterinary Medical Diagnostic Laboratory.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1114, Sec. 1, eff. June 15, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 10, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 11, eff. September 1, 2011.

Sec. 801.257. PROVISIONAL LICENSE TO PRACTICE VETERINARY MEDICINE. (a) The board may grant a provisional license to practice veterinary medicine to an applicant who presents proof that the applicant:

(1) is licensed in good standing as a veterinarian in another state that:

(A) has licensing requirements substantially equivalent to the requirements of this chapter; and

(B) maintains professional standards the board considers equivalent to the professional standards of this chapter; and

(2) has passed a national or other examination recognized by the board relating to veterinary medicine.

(b) Repealed by Acts 2005, 79th Leg., Ch. 27, Sec. 27(1), eff. September 1, 2005.

(c) A provisional license is valid until the date the board approves or denies the provisional license holder's application for a license. The board shall issue a license under this chapter to a provisional license holder if:

(1) the provisional license holder passes the licensing examination under Section 801.253;

(2) the board verifies that the provisional license holder has the academic and experience requirements to qualify for a license; and

(3) the provisional license holder satisfies any other license requirement under this chapter.

(d) The board shall complete the processing of a provisional license holder's application for a license not later than the 180th day after the date the provisional license is issued.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 13, eff. September 1, 2005.

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 27(1), eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 12, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 13, eff. September 1, 2011.

Sec. 801.258. TEMPORARY LICENSE TO PRACTICE VETERINARY MEDICINE. The board by rule may provide for the issuance of a temporary license to practice veterinary medicine to an applicant who:

(1) is licensed in good standing as a veterinarian in

another state or foreign country;

(2) meets the eligibility requirements under Sections [801.252](#)(1) and (2); and

(3) is not subject to denial of a license or to disciplinary action for a ground listed in Section [801.402](#).

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 411 (S.B. [811](#)), Sec. 5, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 14, eff. September 1, 2011.

Sec. 801.259. LICENSED EQUINE DENTAL PROVIDER DESIGNATIONS. (a) A person may not represent to the public that the person is authorized to perform equine dentistry or use the titles "dentist," "certified equine dental provider," "equine dental provider," "CEDP," or "EDP" unless specifically authorized by Subsection (b).

(b) Only a licensed equine dental provider who is certified in accordance with Section [801.261](#)(a)(3) may use the title "certified equine dental provider" or the designation "CEDP." Only a licensed equine dental provider who is licensed before September 1, 2013, and who is not certified in accordance with Section [801.261](#)(a)(3) may use the title "equine dental provider" or the designation "EDP."

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 15, eff. September 1, 2011.

Sec. 801.260. REQUIREMENTS TO PERFORM EQUINE DENTISTRY. A person may not perform equine dentistry or offer or attempt to act as an equine dental provider unless the person is:

(1) a veterinarian who is active and in good standing;

(2) a licensed equine dental provider who is active and in good standing performing under the supervision of a veterinarian who is active and in good standing; or

(3) a student of an equine dental provider certification program approved by the board who:

(A) is completing the practical requirements of the certification program; and

(B) performs equine dentistry under the direct supervision of a veterinarian who is active and in good standing.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 15, eff. September 1, 2011.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 271 (H.B. 3132), Sec. 1, eff. September 1, 2021.

Sec. 801.261. LICENSED EQUINE DENTAL PROVIDER: APPLICATION, QUALIFICATIONS, AND ISSUANCE. (a) The board shall issue an equine dental provider license to a person who is qualified under this section. A person is qualified to be licensed as an equine dental provider if the person:

(1) passes a jurisprudence examination conducted by the board in accordance with Section 801.264;

(2) is not disqualified under this chapter or board rule; and

(3) is certified by the International Association of Equine Dentistry or another board-approved certification entity or organization.

(b) An applicant for an equine dental provider license must submit to the board:

(1) an application on the form prescribed by the board;

(2) information to enable the board to conduct a criminal background check as required by the board; and

(3) any other information required by the board.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 15, eff. September 1, 2011.

Sec. 801.262. SCOPE OF PRACTICE OF LICENSED EQUINE DENTAL PROVIDER. (a) A licensed equine dental provider may not perform equine dentistry unless the provider is active and in good standing and performs equine dentistry under the general supervision of a veterinarian who is active and in good standing.

(b) A licensed equine dental provider may perform only the following equine dental procedures:

- (1) removing sharp enamel points;
- (2) removing small dental overgrowths;
- (3) rostral profiling of the first cheek teeth;
- (4) reducing incisors;
- (5) extracting loose, deciduous teeth;
- (6) removing supragingival calculus;
- (7) extracting loose, mobile, or diseased teeth or dental fragments with minimal periodontal attachments by hand and without the use of an elevator; and
- (8) removing erupted, non-displaced wolf teeth.

(c) Subsection (b) may not be construed to prohibit an employee of a veterinarian who is not a licensed equine dental provider from performing the equine dental procedures described in Subsection (b) if the employee is under the direct supervision of a veterinarian.

(d) A copy of the dental chart of an equine animal is to be left with the person who authorizes an equine dental procedure and is to be made available to the supervising veterinarian upon request.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 15, eff. September 1, 2011.

Sec. 801.263. LICENSED EQUINE DENTAL PROVIDER RESPONSIBILITY. A licensed equine dental provider shall be held to the same standard of care as a veterinarian when the provider performs the equine dental procedures described in Section [801.262](#)(b).

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 15, eff. September 1, 2011.

Sec. 801.264. JURISPRUDENCE EXAMINATION. (a) The board shall develop and administer a jurisprudence examination for licensed equine dental providers to determine an applicant's knowledge of this chapter, board rules, and any other applicable laws of this state affecting the applicant's practice.

(b) The board shall develop and administer a jurisprudence examination for licensed veterinary technicians to determine an applicant's knowledge of this chapter, board rules, and any other applicable laws of this state affecting the applicant's employment as a licensed veterinary technician.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 15, eff. September 1, 2011.

Amended by:

Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. 1312), Sec. 4, eff. September 1, 2013.

Sec. 801.265. LICENSED VETERINARY
TECHNICIAN: APPLICATION, QUALIFICATIONS, AND ISSUANCE. (a) The board shall issue a veterinary technician license to a person who is qualified under this section. A person is qualified to be licensed as a licensed veterinary technician if the person:

(1) passes a jurisprudence examination conducted by the board in accordance with Section 801.264;

(2) is at least 18 years old;

(3) has graduated from a program accredited by the American Veterinary Medical Association;

(4) has passed the Veterinary Technician National Examination; and

(5) is not disqualified under this chapter or board rule.

(b) An applicant for a veterinary technician license must submit to the board:

(1) an application on the form prescribed by the board;

(2) information to enable the board to conduct a criminal background check if required by the board; and

(3) any other information required by the board.

Added by Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. 1312), Sec. 5, eff. September 1, 2013.

Sec. 801.266. LICENSED VETERINARY TECHNICIAN LICENSE
REQUIRED; DISPLAY OF LICENSE. (a) A person may not use the title

"Licensed Veterinary Technician" or "LVT" or advertise or offer services in a manner to lead other people to believe that the person is licensed as a licensed veterinary technician unless the person holds a license under Section [801.265](#).

(b) If employed by a veterinary hospital, a licensed veterinary technician shall display at that facility the person's license issued by the board or a legible photocopy of the license. Added by Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. [1312](#)), Sec. 5, eff. September 1, 2013.

Sec. 801.267. CRIMINAL HISTORY RECORD INFORMATION FOR LICENSE ISSUANCE. (a) The board shall require that an applicant for a license submit a complete and legible set of fingerprints, on a form prescribed by the board, to the board or to the Department of Public Safety for the purpose of obtaining criminal history record information from the Department of Public Safety and the Federal Bureau of Investigation.

(b) The board may not issue a license to a person who does not comply with the requirement of Subsection (a).

(c) The board shall conduct a criminal history record information check of each applicant for a license using information:

(1) provided by the individual under this section; and

(2) made available to the board by the Department of Public Safety, the Federal Bureau of Investigation, and any other criminal justice agency under Chapter [411](#), Government Code.

(d) The board may:

(1) enter into an agreement with the Department of Public Safety to administer a criminal history record information check required under this section; and

(2) authorize the Department of Public Safety to collect from each applicant the costs incurred by the Department of Public Safety in conducting the criminal history record information check.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. [319](#)), Sec. 14, eff. September 1, 2017.

SUBCHAPTER G. LICENSE EXPIRATION AND RENEWAL

Sec. 801.301. LICENSE TERM AND RENEWAL. (a) The board shall provide:

(1) that each type of license under this chapter is valid for a term of one year or two years; and

(2) for the renewal of a license.

(b) The board by rule may adopt a system under which licenses expire on various dates during the year.

(c) For a year in which the license expiration date is changed, the board shall prorate license fees on a monthly basis so that each license holder pays only that portion of the fee that is allocable to the number of months during which the license is valid. On renewal of the license on the new expiration date, the total license renewal fee is payable.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. [319](#)), Sec. 15, eff. September 1, 2017.

Sec. 801.302. NOTICE OF LICENSE EXPIRATION. Not later than the 30th day before the expiration date of a person's license, the board shall send written notice of the impending license expiration to the person at the person's last known address according to the board's records.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.303. PROCEDURE FOR RENEWAL. (a) A person who is otherwise eligible to renew a license may renew an unexpired license by paying the required renewal fee to the board before the expiration date of the license. A person whose license has expired may not engage in activities that require a license until the license has been renewed.

(b) A person whose license has been expired for 90 days or less may renew the license by paying to the board a renewal fee that is equal to 1-1/2 times the renewal fee set by the board under Section [801.154](#)(a).

(c) A person whose license has been expired for more than 90 days but less than one year may renew the license by paying to the board a renewal fee that is equal to two times the renewal fee set by the board under Section [801.154\(a\)](#).

(d) A person whose license has been expired for one year or more may not renew the license. The person may obtain a new license by complying with the requirements and procedures, including the examination requirements, for obtaining an original license.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 14, eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 16, eff. September 1, 2011.

Acts 2015, 84th Leg., R.S., Ch. 448 (H.B. [7](#)), Sec. 31(d), eff. September 1, 2015.

Sec. 801.304. FEE EXEMPTION. A veterinarian is exempt from the fee requirements imposed under Section [801.303](#) if the veterinarian:

(1) is on active duty with the Armed Forces of the United States and does not engage in private or civilian practice; or

(2) is permanently and totally retired.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 17, eff. September 1, 2011.

Sec. 801.305. RENEWAL OF EXPIRED LICENSE BY OUT-OF-STATE PRACTITIONER. (a) A person who was licensed to practice veterinary medicine in this state, moved to another state, and is currently licensed in good standing and has been in practice in the other state for the two years preceding the date of application may obtain a new license to practice veterinary medicine without reexamination.

(b) The person must pay to the board a fee that is equal to

the amount of the renewal fee set by the board under Section 801.154(a).

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 15, eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 18, eff. September 1, 2011.

Acts 2015, 84th Leg., R.S., Ch. 448 (H.B. 7), Sec. 31(e), eff. September 1, 2015.

Sec. 801.306. INACTIVE STATUS. The board by rule may provide for the placement of a license holder on inactive status. The rules adopted under this section may not include a limit on the time a license holder may remain on inactive status.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 19, eff. September 1, 2011.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 16, eff. September 1, 2017.

Sec. 801.307. CONTINUING EDUCATION. (a) The board by rule shall establish a minimum number of hours of continuing education required to renew a license to practice veterinary medicine or work as a licensed veterinary technician. The board shall require six hours of continuing education annually to renew an equine dental provider license.

(a-1) The board by rule shall require a veterinarian to complete two hours of continuing education related to opioid abuse and controlled substance diversion, inventory, and security every two years to renew a license to practice veterinary medicine.

(b) The board may:

(1) establish general categories of continuing education that meet the needs of license holders;

(2) require a license holder to successfully complete continuing education courses; and

(3) for a license valid for two years, provide a one year or two year period for the completion of continuing education.

(c) The board may require a license holder who does not complete the required number of hours of continuing education in a period to make up the missed hours in a later period. Hours required to be made up in a later period are in addition to the hours normally required to be completed in that period.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 16, eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 20, eff. September 1, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. 1312), Sec. 6, eff. September 1, 2013.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 17, eff. September 1, 2017.

Acts 2019, 86th Leg., R.S., Ch. 449 (S.B. 1947), Sec. 2, eff. September 1, 2019.

Acts 2019, 86th Leg., R.S., Ch. 1166 (H.B. 3284), Sec. 4, eff. September 1, 2019.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 38(3), eff. September 1, 2025.

Sec. 801.308. CONTINUING EDUCATION AUDITS. (a) The board shall monitor compliance with continuing education requirements by conducting random audits of license holders seeking renewal. The board staff may conduct an audit at any time. The board may perform additional compliance monitoring by other means.

(b) A license holder who is audited shall provide proof of course completion to the board, including certificates of completion.

(c) A list of completed continuing education courses from the license holder on one presigned form does not establish compliance.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 17, eff. September 1, 2005.

Sec. 801.309. CRIMINAL HISTORY RECORD INFORMATION REQUIREMENT FOR LICENSE RENEWAL. (a) An applicant renewing a license issued under this chapter shall submit a complete and legible set of fingerprints for purposes of performing a criminal history record information check of the applicant as provided by Section [801.267](#).

(b) The board may administratively suspend or refuse to renew the license of a person who does not comply with the requirement of Subsection (a).

(c) A license holder is not required to submit fingerprints under this section for the renewal of the license if the license holder has previously submitted fingerprints under:

(1) Section [801.267](#) for the initial issuance of the license; or

(2) this section as part of a prior license renewal.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. [319](#)), Sec. 18, eff. September 1, 2017.

SUBCHAPTER H. PRACTICE BY VETERINARIAN

Sec. 801.351. EXISTENCE OF VETERINARIAN-CLIENT-PATIENT RELATIONSHIP. (a) A person may not practice veterinary medicine unless a veterinarian-client-patient relationship exists. A veterinarian-client-patient relationship exists if the veterinarian:

(1) assumes responsibility for medical judgments regarding the health of an animal and a client, who is the owner or other caretaker of the animal, agrees to follow the veterinarian's instructions;

(2) possesses sufficient knowledge of the animal to initiate at least a general or preliminary diagnosis of the animal's medical condition; and

(3) is readily available to provide, or has provided, follow-up medical care in the event of an adverse reaction to, or a failure of, the regimen of therapy provided by the veterinarian.

(b) A veterinarian possesses sufficient knowledge of the

animal for purposes of Subsection (a)(2) if the veterinarian has recently seen, or is personally acquainted with, the keeping and care of the animal by:

(1) examining the animal; or

(2) making medically appropriate and timely visits to the premises on which the animal is kept.

(c) A veterinarian-client-patient relationship may not be established solely by telephone or electronic means.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 971 (H.B. [1767](#)), Sec. 1, eff. September 1, 2005.

Sec. 801.352. PROHIBITION AGAINST INTERFERENCE OR INTERVENTION. (a) The professional services of a veterinarian may not be controlled or exploited by a person who:

(1) is not a veterinarian; and

(2) intervenes between the veterinarian and the veterinarian's client.

(b) A veterinarian may not:

(1) allow a person who does not hold a license to practice veterinary medicine issued under this chapter to interfere with or intervene in the veterinarian's practice of veterinary medicine; or

(2) submit to interference or intervention by a person who does not hold a license to practice veterinary medicine issued under this chapter.

(c) A veterinarian shall avoid a relationship that may result in interference with or intervention in the veterinarian's practice of veterinary medicine by a person who does not hold a license to practice veterinary medicine issued under this chapter.

(d) A veterinarian is responsible for the veterinarian's actions. The veterinarian is directly responsible to the client and for the care and treatment of the patient.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 21, eff.

September 1, 2011.

Sec. 801.353. CONFIDENTIALITY; WAIVER. (a) A veterinarian may not violate the confidential relationship between the veterinarian and the veterinarian's client.

(b) A veterinarian may not be required to release information concerning the veterinarian's care of an animal, except on the veterinarian's receipt of:

(1) a written authorization or other form of waiver executed by the client; or

(2) an appropriate court order or subpoena.

(c) A veterinarian who releases information as required under Subsection (b) is not liable to any person, including the client, for an action resulting from the disclosure.

(d) The privilege provided by this section is waived by the client or the owner of an animal treated by the veterinarian to the extent the client or owner places at issue in a civil or criminal proceeding:

(1) the nature and extent of the animal's injuries; or

(2) the care and treatment of the animal provided by the veterinarian.

(d-1) The privilege provided by this section is waived by the client or the owner of the animal treated by the veterinarian in a proceeding to substantiate and collect on a claim for the provision of or a debt incurred for veterinary services.

(d-2) The privilege provided by this section is waived by the client or the owner of the animal treated by the veterinarian with respect to information regarding the animal's care and treatment by the veterinarian that the client or owner publishes in a public forum if:

(1) the information shared by the client or owner in the public forum is false with respect to the veterinarian;

(2) any information shared by the veterinarian in response is limited to factual information of which the veterinarian has knowledge that directly refutes the false information shared by the client or owner in the public forum; and

(3) the veterinarian does not share any personally

identifiable information of a client or owner other than the full name of the client or owner.

(e) This section does not apply to an inspection or investigation conducted by the board or an agent of the board.

(f) A veterinarian does not violate this section by providing the name or address of a client, or the rabies vaccination status of a specific client's specific animal, to a public health authority, veterinarian, physician, or other licensed health care professional who requests the identity of the client to obtain information for:

(1) the verification of a rabies vaccination;

(2) other treatment involving a life-threatening situation; or

(3) a public health purpose.

(f-1) A veterinarian does not violate this section by providing to a veterinarian or an appropriate governmental entity information regarding:

(1) the prescribing, dispensing, or requesting of a controlled substance; or

(2) cruelty to or an attack of an animal.

(g) A public health authority or other governmental entity that receives information under Subsection (f) or (f-1) shall maintain the confidentiality of the information, may not disclose the information under Chapter 552, Government Code, and may not use the information for a purpose that does not directly relate to law enforcement or the protection of public health and safety.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 971 (H.B. 1767), Sec. 2, eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 231 (H.B. 413), Sec. 1, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 411 (S.B. 811), Sec. 6, eff. September 1, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 161 (S.B. 1093), Sec. 14.003, eff. September 1, 2013.

Acts 2021, 87th Leg., R.S., Ch. 827 (H.B. 2850), Sec. 2, eff.

September 1, 2021.

Sec. 801.354. AUTHORIZED BUSINESS PRACTICES. It is not a violation of this chapter for a veterinarian, or a business entity authorized under this chapter to render veterinary services, to:

(1) lease space for the purpose of providing veterinary services;

(2) pay for franchise fees or other services on a percentage-of-receipts basis; or

(3) sell, transfer, or assign accounts receivable.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.3541. LOCATION OF VETERINARY PRACTICE. The premises on which a veterinary practice is located may be owned by a person or other legal entity that does not hold a license to practice veterinary medicine issued under this chapter.

Added by Acts 2001, 77th Leg., ch. 1420, Sec. 14.421(d), eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 22, eff. September 1, 2011.

Sec. 801.355. LEASING SPACE FROM MERCANTILE ESTABLISHMENT.

(a) The practice of a veterinarian who leases space from a mercantile establishment and practices veterinary medicine on the premises of the mercantile establishment must be owned by a veterinarian. The practice and the leased space must be under the exclusive control of a veterinarian.

(b) The leased space must be definite and apart from the space occupied by other occupants of the premises. The leased space must be separated from the space used by other occupants by solid and opaque partitions or walls that extend from the floor to the ceiling. The requirement of this subsection is not satisfied by the use of railings, curtains, or other similar arrangements.

(c) The leased space must have a patient's entrance that:

(1) opens to a public street, hall, lobby, corridor, or other public thoroughfare other than the aisle of a mercantile

establishment; and

(2) is actually used as an entrance by the veterinarian's patients.

(d) The leased space may have an additional patient's entrance, that may be nonopaque, that opens from the inside of the mercantile establishment directly into the leased space.

(e) The practice of the veterinarian may not be conducted in any part as a department or concession of the mercantile establishment. A legend or sign that states "Veterinary Department," or that contains other words implying that the practice is not an independent veterinary practice, may not be displayed on the premises or in an advertisement for the premises. The use of the veterinarian's name must clearly indicate that the practice is independent and not under the ownership or control of the mercantile establishment.

(f) The patient and business records of the practice of the veterinarian are the sole property of the veterinarian. The mercantile establishment or a person who is not a veterinarian may not control the records, except that:

(1) business records that are essential to the initiation or continuation of a percentage of gross receipts lease of space may be inspected by the lessor; and

(2) a veterinarian may enter into a management agreement that permits an employee or agent of the management company to access or copy patient records as necessary to perform management functions.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.356. EXEMPTIONS FROM REQUIREMENTS RELATED TO MERCANTILE ESTABLISHMENT. (a) Section 801.355(c) does not apply to the practice of a veterinarian, or the legal successor of the practice, if the practice is operating in space that was opened, designed, or engineered in accordance with plans for a specific facility submitted to the board before December 31, 2009.

(b) Section 801.355 does not prohibit the delivery of temporary limited-service veterinary activities, including preventive veterinary services such as vaccinations and testing, at

a mercantile establishment that is not owned or under the exclusive control of a veterinarian if the services are periodic and delivered by a veterinarian. The board by rule may establish the conditions under which a veterinarian may provide the services described by this subsection.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 41 (H.B. [1615](#)), Sec. 1, eff. May 19, 2009.

Sec. 801.357. RESPONSIBILITY OF VETERINARIAN TOWARD ABANDONED ANIMALS. (a) A veterinarian may dispose of an animal that is abandoned in the veterinarian's care if the veterinarian:

(1) gives the client, by certified mail to the client's last known address, notice of the veterinarian's intention to dispose of the animal; and

(2) allows the client to retrieve the animal during the 10 days after the date the veterinarian mails the notice.

(b) A veterinarian may not dispose of an animal under Subsection (a) if:

(1) a contract between the veterinarian and client provides otherwise; or

(2) after notice is given under Subsection (a), the veterinarian and client agree to extend the veterinarian's care of the animal.

(c) The client's contact of the veterinarian by mail, telephone, or personal communication does not extend the veterinarian's obligation to treat, board, or care for an animal unless the veterinarian and client agree to extend the veterinarian's care of the animal.

(d) An animal is considered abandoned on the 11th day after the date the veterinarian mails the notice under Subsection (a) unless an agreement is made to extend the care for the animal.

(e) Notice given by a veterinarian under Subsection (a) does not relieve a client of liability to pay for treatment, boarding, or care provided by the veterinarian.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 971 (H.B. [1767](#)), Sec. 3, eff. September 1, 2005.

Sec. 801.358. LIABILITY OF VETERINARIAN FOR EMERGENCY TREATMENT; EUTHANASIA PRESUMPTION. (a) A veterinarian who provides emergency treatment to an ill or injured animal on the veterinarian's own initiative, or at the request of a person other than the animal's owner, is not liable to the owner for damages to the animal unless the veterinarian commits gross negligence.

(b) If the veterinarian performs euthanasia on the animal, the veterinarian is presumed to have performed a humane act necessary to relieve the animal's pain and suffering.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.3581. PRICE TRANSPARENCY FOR EMERGENCY CARE. (a) The board shall adopt rules to require a veterinarian to disclose to the owner or other caretaker of an animal the following information before providing emergency treatment to an ill or injured animal:

- (1) a description of the proposed treatment; and
- (2) the estimated price of the proposed treatment.

(b) Rules adopted under this section must ensure the veterinarian has a reasonable opportunity to:

(1) assess the animal's condition and develop proposed options for treatment before providing the information described by Subsection (a); and

(2) propose additional treatment options and price estimates based on changes in the animal's medical condition.

Added by Acts 2023, 88th Leg., R.S., Ch. 620 (H.B. [4069](#)), Sec. 1, eff. September 1, 2023.

Sec. 801.3585. LIABILITY FOR REPORTING ANIMAL CRUELTY; IMMUNITY. A veterinarian who in good faith and in the normal course of business reports to the appropriate governmental entity a suspected incident of animal cruelty under Section [42.09](#) or [42.092](#), Penal Code, is immune from liability in a civil or criminal action

brought against the veterinarian for reporting the incident.

Added by Acts 2005, 79th Leg., Ch. 971 (H.B. [1767](#)), Sec. 4, eff. September 1, 2005.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 886 (H.B. [2328](#)), Sec. 5, eff. September 1, 2007.

Sec. 801.359. CONTROLLED SUBSTANCES RECORDS. (a) The board shall require each veterinarian to maintain a recordkeeping system for controlled substances as required by Chapter [481](#), Health and Safety Code.

(b) The records are subject to review by a law enforcement agency or board representative.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.360. DEATH OF VETERINARIAN. On the death of a veterinarian, the veterinarian's practice ownership and patient records become the property of the veterinarian's heirs to dispose of as necessary not later than the second anniversary of the date of the veterinarian's death.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.361. DISPOSAL OF ANIMAL REMAINS. (a) In this section, " medical waste" includes animal waste, blood, gloves, sleeves, newspapers, and plastic bags, but does not include sharps.

(b) A veterinarian may dispose of the remains of an animal and medical waste associated with the animal by burial or burning if:

(1) the burial or burning occurs on property owned by the veterinarian that is located:

(A) outside the corporate boundaries of a municipality; or

(B) within the corporate boundaries of a municipality as a result of an annexation that occurs on or after September 1, 2003; and

(2) at least one of the following requirements is met:

(A) a veterinarian-client-patient relationship

existed between the veterinarian, the owner or other caretaker of the animal, and the animal before the animal's death;

(B) the veterinarian diagnosed, treated, boarded, or otherwise cared for the animal before its death; or

(C) the veterinarian performed euthanasia or an autopsy on the animal.

(c) Notwithstanding any other law, the Texas Commission on Environmental Quality may not adopt a rule that prohibits conduct authorized by this section.

(d) The Texas Commission on Environmental Quality may not adopt a rule that relates to the disposal of animal remains under this section unless the rule is developed in cooperation with and is approved by the Texas Animal Health Commission.

(e) This section prevails over any other law that authorizes a governmental entity to:

(1) prohibit or restrict outdoor burning; or

(2) abate a public nuisance.

Added by Acts 2001, 77th Leg., ch. 965, Sec. 17.01, eff. Sept. 1, 2001. Amended by Acts 2003, 78th Leg., ch. 806, Sec. 1, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1333, Sec. 3, eff. Sept. 1, 2003. Amended by:

Acts 2005, 79th Leg., Ch. 728 (H.B. [2018](#)), Sec. 23.001(74), eff. September 1, 2005.

Sec. 801.362. AUTHORITY TO DISPENSE DRUGS PRESCRIBED BY ANOTHER VETERINARIAN IN EMERGENCY. (a) A veterinarian may dispense a drug, other than a controlled substance, prescribed by another veterinarian, including a veterinarian licensed in another state, if:

(1) failure to dispense the drug could interrupt a therapeutic regimen or cause a patient to suffer;

(2) the prescribing veterinarian informs the dispensing veterinarian that the drug is appropriate and necessary for the animal;

(3) the quantity of the dispensed drug does not exceed a five-day supply for each animal annually;

(4) the annual total of dosage units of drugs

dispensed under this subsection is not more than five percent of the total dosage units of drugs the veterinarian dispenses in a year; and

(5) the veterinarian maintains records of dispensing activities under this section consistent with board rules.

(b) A veterinarian does not violate Section [801.402](#) by ordering a prescription drug in compliance with this section for the treatment of an animal without first establishing a veterinarian-client-patient relationship.

(c) The board may adopt rules to implement this section.
Added by Acts 2005, 79th Leg., Ch. 971 (H.B. [1767](#)), Sec. 5, eff. September 1, 2005.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 699 (H.B. [2765](#)), Sec. 1, eff. June 19, 2009.

Sec. 801.363. DELEGATION AND SUPERVISION OF ANIMAL CARE TASKS. (a) Decisions relating to the diagnosis, treatment, management, and future disposition of an animal patient must be made by a supervising veterinarian.

(b) A supervising veterinarian shall determine the appropriate level of supervision and protocol for a task that is delegated to a licensed veterinary technician, certified veterinary assistant, or veterinary assistant. In determining the appropriate level of supervision, the veterinarian must consider the level of training and experience of the person to whom the task is delegated.

(c) According to the judgment of the supervising veterinarian, a veterinarian may delegate greater responsibility to a licensed veterinary technician than to a certified veterinary assistant or a veterinary assistant. A veterinarian may provide greater supervision for a task performed by a certified veterinary assistant or a veterinary assistant than for the same task performed by a licensed veterinary technician.

(d) A satellite office or mobile facility may not be operated without a supervising veterinarian.

Added by Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. [1312](#)), Sec. 7,

eff. September 1, 2013.

Sec. 801.364. SCOPE OF PRACTICE OF LICENSED VETERINARY TECHNICIANS, CERTIFIED VETERINARY ASSISTANTS, AND VETERINARY ASSISTANTS. (a) A licensed veterinary technician may:

(1) under the direct or immediate supervision of a veterinarian:

(A) suture to close existing surgical skin incisions and skin lacerations;

(B) induce anesthesia; and

(C) extract loose teeth or dental fragments of companion animals with minimal periodontal attachments by hand and without the use of an elevator;

(2) under the direct, immediate, or general supervision of a veterinarian:

(A) draw blood; and

(B) take samples for the purpose of testing and diagnosis;

(3) perform a task assigned by the supervising veterinarian under a level of supervision determined by the supervising veterinarian; and

(4) immediately supervise a certified veterinary assistant or veterinary assistant who is performing a task described by Subdivision (1)(A) or (B) or (2) or other tasks related to animal care as assigned by the supervising veterinarian according to the protocol established by the supervising veterinarian.

(b) A licensed veterinary technician who is immediately supervising a task performed by a certified veterinary assistant or a veterinary assistant is responsible for conduct that violates laws, including board rules, related to the practice of veterinary medicine.

(c) In addition to tasks described by Subsection (a)(4), a certified veterinary assistant or veterinary assistant may:

(1) under the immediate supervision of a veterinarian:

(A) suture to close existing surgical skin incisions and skin lacerations; and

(B) induce anesthesia; and

(2) perform other tasks assigned by the supervising veterinarian under a level of supervision determined by the supervising veterinarian.

(d) A licensed veterinary technician, certified veterinary assistant, or veterinary assistant may not:

(1) perform surgery;

(2) perform an invasive dental procedure, except as provided by Subsection (a)(1)(C);

(3) diagnose or determine a prognosis for an animal disease or condition;

(4) prescribe a drug or appliance; or

(5) initiate treatment without prior instruction by a veterinarian, except in the case of an emergency.

Added by Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. [1312](#)), Sec. 7, eff. September 1, 2013.

SUBCHAPTER I. LICENSE DENIAL AND DISCIPLINARY PROCEDURES

Sec. 801.401. DISCIPLINARY POWERS OF BOARD. (a) If an applicant or license holder is subject to denial of a license or to disciplinary action under Section [801.402](#), the board may:

(1) refuse to examine an applicant or to issue or renew a license;

(2) revoke or suspend a license;

(3) place on probation a license holder or person whose license has been suspended;

(4) reprimand a license holder; or

(5) impose an administrative penalty.

(b) The board may take action under Subsection (a) after notice and hearing under Section [801.407](#) or as provided by board rule.

(c) The board may require a license holder whose license suspension is probated to:

(1) report regularly to the board on matters that are the basis of the probation;

(2) limit practice to the areas prescribed by the

board; or

(3) continue or review continuing professional education until the license holder attains a degree of skill satisfactory to the board in those areas that are the basis of the probation.

(d) In addition to other disciplinary actions authorized by this subchapter, the board may require a license holder who violates this chapter to participate in a continuing education program. The board shall specify the continuing education programs that the license holder may attend and the number of hours that the license holder must complete. A continuing education program specified by the board must be relevant to the violation committed by the license holder.

(e) The board may issue a disciplinary order directing a veterinarian to participate in the peer assistance program under Section 801.157 if the board determines that the veterinarian is an impaired professional as defined by Section 467.001, Health and Safety Code.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 18, eff. September 1, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 697 (H.B. 412), Sec. 1, eff. September 1, 2011.

Sec. 801.4011. DEFERRED ACTION. (a) For any action or complaint for which the board proposes to impose on a person a sanction other than a reprimand or a denial, suspension, or revocation of a license, the board may:

(1) defer the final action the board has proposed if the person conforms to conditions imposed by the board, including any condition the board could impose as a condition of probation under Section 801.401; and

(2) if the person successfully meets the imposed conditions, dismiss the complaint.

(b) Except as provided by this subsection, a deferred action by the board is not confidential and is subject to disclosure in

accordance with Chapter 552, Government Code. If the person successfully meets the conditions imposed by the board in deferring final action and the board dismisses the action or complaint, the deferred action of the board is confidential to the same extent as a complaint is confidential under Section 801.207.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 28, eff. September 1, 2025.

Sec. 801.402. GENERAL GROUNDS FOR LICENSE DENIAL OR DISCIPLINARY ACTION. A person is subject to denial of a license or to disciplinary action under Section 801.401 if the person:

(1) presents to the board dishonest or fraudulent evidence of the person's qualifications;

(2) commits fraud or deception in the examination process or to obtain a license;

(3) is chronically or habitually intoxicated, chemically dependent, or addicted to drugs;

(4) engages in dishonest or illegal practices in, or connected with, the practice of veterinary medicine or the practice of equine dentistry;

(5) is convicted of a felony under the laws of this state, another state, or the United States;

(6) engages in practices or conduct that violates the board's rules of professional conduct;

(7) permits another to use the person's license to practice veterinary medicine or to practice equine dentistry in this state;

(8) fraudulently issues a health certificate, vaccination certificate, test chart, or other form used in the practice of veterinary medicine or the practice of equine dentistry that relates to the presence or absence of animal disease;

(9) issues a false certificate relating to the sale for human consumption of inedible animal products;

(10) commits fraud in connection with the application or reporting of a test of animal disease;

(11) pays or receives a kickback, rebate, bonus, or other remuneration for treating an animal or for referring a client

to another provider of veterinary or equine dental services or goods;

(12) performs or prescribes unnecessary or unauthorized treatment;

(13) orders a prescription drug or controlled substance for the treatment of an animal without first establishing a veterinarian-client-patient relationship;

(14) refuses to admit a board representative to inspect the person's client and patient records and business premises during regular business hours;

(15) fails to keep the person's equipment and business premises in a sanitary condition;

(16) commits gross malpractice or a pattern of acts that indicate consistent malpractice, negligence, or incompetence in the practice of veterinary medicine or the practice of equine dentistry;

(17) is subject to disciplinary action in another jurisdiction, including the suspension, probation, or revocation of a license to practice veterinary medicine or to practice equine dentistry issued by another jurisdiction;

(18) is convicted for an offense under Section [42.09](#), [42.091](#), or [42.092](#), Penal Code;

(19) represents the person as a veterinarian without a license issued under this chapter;

(20) practices veterinary medicine or assists in the practice of veterinary medicine without a license issued under this chapter; or

(21) violates Section [801.353](#) or a rule adopted by the board related to confidentiality.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 23, eff. September 1, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 481 (S.B. [1312](#)), Sec. 8, eff. September 1, 2013.

Sec. 801.403. FAILURE TO REPORT DISEASE. The board may

suspend or revoke a license to practice veterinary medicine, place a veterinarian on probation, or reprimand a veterinarian if the veterinarian knowingly fails to report a disease to the Texas Animal Health Commission as required by Section [161.101](#), Agriculture Code.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 23, eff. September 1, 2011.

Sec. 801.404. FAILURE TO MAINTAIN RECORDS. The board may suspend or revoke a license to practice veterinary medicine issued under this chapter or place on probation a veterinarian if the veterinarian fails to maintain records as required by Section [801.359](#).

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 23, eff. September 1, 2011.

Sec. 801.405. MENTAL INCOMPETENCE. (a) The board may suspend or revoke a license if a court finds that the license holder is mentally incompetent.

(b) If a court determines that a person whose license is suspended or revoked under this section is mentally competent, the board may reinstate the person's license.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.406. REINSTATEMENT AFTER CERTAIN FELONY CONVICTIONS. (a) If a person's license has been revoked:

(1) by operation of law pursuant to Section [53.021](#)(b), Occupations Code, upon imprisonment after a conviction of a felony under Chapter [481](#) or [483](#) of the Health and Safety Code; or

(2) by the board upon conviction of a license holder of an offense under Section [485.033](#), Health and Safety Code, or of any offense under Chapter 481 or 483 of that code, the board may reinstate or reissue the license only upon determining that

reinstatement or reissuance of the license is in the best interests of the public and the person whose license has been revoked.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 19, eff. September 1, 2005.

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 27(2), eff. September 1, 2005.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 25, eff. September 1, 2025.

Sec. 801.407. RIGHT TO HEARING. (a) A person is entitled to a hearing before the State Office of Administrative Hearings if the board:

- (1) refuses to examine the person;
- (2) denies the person's application for a license;
- (3) revokes or suspends the person's license;
- (4) places the person on probation;
- (5) reprimands the person; or
- (6) assesses an administrative penalty against the person.

(b) A hearing conducted under this section is governed by Chapter 2001, Government Code.

(c) The State Office of Administrative Hearings shall use the schedule of sanctions under Section 801.411 for any sanction imposed as the result of a hearing conducted by that office.

(d) The board shall by rule prescribe notice procedures for proceedings under this subchapter.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 20, eff. September 1, 2005.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 19, eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 20, eff. September 1, 2017.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 26, eff.

September 1, 2025.

Sec. 801.408. INFORMAL PROCEEDINGS. (a) The board by rule shall adopt procedures governing:

(1) informal disposition of a contested case under Section 2001.056, Government Code; and

(2) an informal proceeding held in compliance with Section 2001.054, Government Code.

(b) Rules adopted under Subsection (a) must:

(1) provide the complainant and the license holder an opportunity to be heard; and

(2) require the presence of a member of the board's legal staff or a representative of the attorney general during an informal proceeding to advise the board or the board's employees.

(c) A committee of two or more veterinarian board members and one or more public board members must be present at an informal proceeding for a complaint that requires medical expertise. The committee shall recommend enforcement action at the informal proceeding.

(d) Before an informal disposition is effective, the board must review and approve at a public meeting an informal disposition of the complaint recommended by board members or board staff.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 21, eff. September 1, 2005.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 27, eff. September 1, 2025.

Sec. 801.409. TEMPORARY LICENSE SUSPENSION. (a) An executive committee of the board consisting of the president and two other board members appointed by the president may temporarily suspend the license of a license holder if the executive committee determines from the evidence or information presented to the committee that continued practice by the license holder constitutes a continuing or imminent threat to the public welfare. A temporary suspension may also be ordered on a majority vote of the board.

(b) The board by rule shall adopt procedures for the temporary suspension of a license under this section.

(c) A license temporarily suspended under this section may be suspended without notice or hearing if, at the time the suspension is ordered, a hearing on whether disciplinary proceedings under this chapter should be initiated against the license holder is scheduled to be held not later than the 14th day after the date of the suspension.

(d) A second hearing on the suspended license shall be held not later than the 60th day after the date the suspension is ordered. If the second hearing is not held in the time required by this subsection, the suspended license is automatically reinstated.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.410. VENUE FOR APPEAL. An appeal of an action of the board must be filed in a district court in Travis County.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.411. SCHEDULE OF SANCTIONS. (a) The board by rule shall adopt a schedule of penalties, disciplinary actions, and other sanctions that the board may impose under this chapter.

(b) In adopting the schedule of sanctions under Subsection (a), the board shall ensure that the severity of the sanction imposed is appropriate to the type of violation or conduct that is the basis for disciplinary action. The schedule must provide that the type of disciplinary action or other sanction and the amount of a penalty imposed under this chapter must be based on:

(1) the seriousness of the violation, including:

(A) the nature, circumstances, extent, and gravity of any prohibited act; and

(B) the hazard or potential hazard created to the health, safety, or economic welfare of the public;

(2) the economic harm to property or the environment caused by the violation;

(3) the history of previous violations;

(4) the amount of penalty or type of disciplinary

action or sanction necessary to deter a future violation;

(5) efforts to correct the violation; and

(6) any other matter that justice may require.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 21, eff. September 1, 2017.

SUBCHAPTER J. ADMINISTRATIVE PENALTY

Sec. 801.451. IMPOSITION OF ADMINISTRATIVE PENALTY. The board may impose an administrative penalty on a person, including a corporation, organization, business trust, estate, trust, partnership, association, or other legal entity, who violates this chapter or a rule adopted or order issued under this chapter.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1420, Sec. 14.423(a), eff. Sept. 1, 2001.

Sec. 801.452. AMOUNT OF PENALTY. (a) The amount of an administrative penalty may not exceed \$5,000 for each violation per day.

(b) The amount of the penalty shall be based on the schedule of sanctions adopted under Section 801.411.

(c) A committee described by Section 801.408(c) or (d) shall recommend the amount of the administrative penalty based on the schedule of sanctions adopted under Section 801.411.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 22, eff. September 1, 2005.

Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 22, eff. September 1, 2017.

Sec. 801.4521. IMPOSITION OF SANCTION. A proceeding under this subchapter imposing an administrative penalty may be combined with a proceeding to impose an administrative sanction. If a sanction is imposed in a proceeding under this subchapter, the requirements of this subchapter apply to the imposition of the

sanction.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 29, eff. September 1, 2025.

Sec. 801.453. COMMITTEE RECOMMENDATIONS. (a) On a determination by a committee described by Section [801.408](#)(c) that a violation of this chapter or a rule adopted or order issued under this chapter occurred, the committee may issue a report to the board stating:

- (1) the facts on which the determination is based; and
- (2) the committee's recommendation on the imposition of an administrative penalty, including a recommendation on the amount of the penalty.

(b) Not later than the 14th day after the date the report is issued, the executive director shall give written notice of the committee's report to the person on whom the penalty may be imposed. The notice may be given by certified mail.

- (c) The notice given under this section must:
- (1) include a notice of each alleged violation;
 - (2) state the amount of any recommended penalty; and
 - (3) inform the person of the person's right to a hearing on the occurrence of the violation, the amount of the penalty, or both.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. [407](#)), Sec. 23, eff. September 1, 2005.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 30, eff. September 1, 2025.

Sec. 801.454. PENALTY TO BE PAID OR HEARING REQUESTED. (a) Not later than the 20th day after the date a person receives a notice of alleged violation, the person may in writing:

- (1) accept the board's determination and recommended administrative penalty; or
- (2) request a hearing on the occurrence of the violation, the amount of the penalty, or both.

(b) If the person accepts the board's determination and recommended penalty, the board by order shall approve the determination and require the person to pay the recommended penalty.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 24, eff. September 1, 2005.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 31, eff. September 1, 2025.

Sec. 801.455. HEARING. (a) If a respondent requests a hearing pursuant to Section 801.407, the hearing shall be conducted by the State Office of Administrative Hearings.

(b) The State Office of Administrative Hearings shall consider the board's applicable substantive rules and policies when conducting a hearing under this subchapter.

(c) The administrative law judge shall:

(1) make findings of fact and conclusions of law; and

(2) promptly issue to the board a proposal for a decision as to the occurrence of the violation, any recommended license sanction, and the amount of any proposed administrative penalty.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 32, eff. September 1, 2025.

Sec. 801.456. DECISION BY BOARD. (a) Based on the findings of fact, conclusions of law, and proposal for a decision under Section 801.455(c), the board by order may determine that:

(1) a violation has occurred and impose a license sanction, administrative penalty, or both; or

(2) a violation did not occur.

(b) The notice of the board's order given to the person under Chapter 2001, Government Code, must include a statement of the person's right to judicial review of the order.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 33, eff. September 1, 2025.

Sec. 801.457. OPTIONS FOLLOWING DECISION: PAY OR APPEAL.

(a) Not later than the 30th day after the date the board's order becomes final, the person shall:

- (1) pay the administrative penalty;
- (2) pay the penalty and file a petition for judicial review contesting the order; or
- (3) without paying the penalty, file a petition for judicial review contesting the order.

(b) Within the 30-day period, a person who acts under Subsection (a)(3) may:

- (1) stay enforcement of the penalty by:
 - (A) paying the penalty to the court for placement in an escrow account; or
 - (B) giving the court a supersedeas bond that is approved by the court and that:
 - (i) is for the amount of the penalty; and
 - (ii) is effective until judicial review of the board's order is final; or

(2) request the court to stay enforcement of the penalty by:

- (A) filing with the court a sworn affidavit of the person stating that the person is financially unable to pay the penalty and is financially unable to give the supersedeas bond; and
- (B) giving a copy of the affidavit to the executive director by certified mail.

(c) If the executive director receives a copy of an affidavit under Subsection (b)(2), the executive director may file with the court a contest to the affidavit not later than the fifth day after the date the copy is received.

(d) The court shall hold a hearing on the facts alleged in the affidavit as soon as practicable and stay enforcement of the penalty on finding that the alleged facts are true. The person who

files the affidavit has the burden of proving that the person is financially unable to pay the penalty and to give the supersedeas bond.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 34, eff. September 1, 2025.

Sec. 801.458. COLLECTION OF PENALTY. If the person does not pay the administrative penalty and the enforcement of the penalty is not stayed, the executive director may refer the matter to the attorney general for collection of the penalty.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.460. REMITTANCE OF PENALTY AND INTEREST. (a) If, after judicial review, the administrative penalty is reduced or not upheld by the court, the court shall, after the judgment becomes final:

(1) order the appropriate amount, plus accrued interest, be remitted to the person if the person paid the penalty; or

(2) order the release of the bond after the person pays the penalty imposed if the person posted a supersedeas bond.

(b) The interest paid under Subsection (a)(1) is the rate charged on loans to depository institutions by the New York Federal Reserve Bank. The interest shall be paid for the period beginning on the date the penalty is paid and ending on the date the penalty is remitted.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

SUBCHAPTER K. OTHER PENALTIES AND ENFORCEMENT PROVISIONS

Sec. 801.501. MONITORING LICENSE HOLDER. The board by rule shall develop a system for monitoring a license holder's compliance with the requirements of this chapter. The rules must include procedures to:

(1) monitor for compliance a license holder who is

ordered by the board to perform certain acts; and

(2) identify and monitor a license holder who represents a risk to the public.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.5011. MONITORING HARMFUL PRESCRIBING AND DISPENSING PATTERNS. (a) The board shall periodically check the prescribing and dispensing information submitted to the Texas State Board of Pharmacy as authorized by Section 481.076(a)(1), Health and Safety Code, to determine whether a veterinarian is engaging in potentially harmful prescribing or dispensing patterns or practices.

(b) The board, in coordination with the Texas State Board of Pharmacy, shall determine the conduct that constitutes a potentially harmful prescribing or dispensing pattern or practice for purposes of Subsection (a). In determining the conduct that constitutes a potentially harmful prescribing or dispensing pattern or practice, the board, at a minimum, shall consider:

(1) the number of times a veterinarian prescribes or dispenses:

- (A) opioids;
- (B) benzodiazepines;
- (C) barbiturates; or
- (D) carisoprodol; and

(2) for prescriptions and dispensations described by Subdivision (1), patterns of prescribing or dispensing combinations of those drugs and other dangerous combinations of drugs identified by the board.

(c) If the board suspects that a veterinarian may be engaging in potentially harmful prescribing or dispensing patterns or practices, the board may notify the veterinarian of the potentially harmful prescribing or dispensing pattern or practice.

(d) The board may initiate a complaint against a veterinarian based on information obtained under this section.

Added by Acts 2017, 85th Leg., R.S., Ch. 536 (S.B. 319), Sec. 23, eff. September 1, 2017.

Sec. 801.502. INJUNCTIVE RELIEF. (a) The board, through the attorney general or a district or county attorney, may bring an action for an injunction, or a proceeding incident to an injunction, to:

(1) enforce this chapter; or

(2) enjoin a person, including a corporation, organization, business trust, estate, trust, partnership, association, or other legal entity, from practicing veterinary medicine or equine dentistry in violation of this chapter.

(b) Venue for an action under this section is in:

(1) the county in which the person against whom the action is brought resides, if the person is an individual who resides in this state;

(2) the county of the defendant's principal office in this state if the defendant is not an individual; or

(3) Travis County, if the person:

(A) is an individual who does not reside in this state; or

(B) is an entity that does not have its principal office in this state.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1420, Sec. 14.424(a), eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. [414](#)), Sec. 24, eff. September 1, 2011.

Sec. 801.503. ASSESSMENT OF CIVIL PENALTY AGAINST PERSON NOT LICENSED. (a) A person not licensed under this chapter, including a corporation, organization, business trust, estate, trust, partnership, association, or other legal entity, who violates this chapter or a rule adopted by the board under this chapter is subject to a civil penalty of \$1,000 for each day of violation.

(b) At the request of the board, the attorney general shall bring an action to recover a civil penalty authorized by this section.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1420, Sec. 14.422(a), eff. Sept. 1, 2001.

Sec. 801.504. GENERAL CRIMINAL PENALTY. (a) A person, including an entity, commits an offense if the person violates this chapter.

(b) An offense under this section is a Class A misdemeanor.

(c) Venue for the prosecution of an offense under this section that consists of the violation of Section 801.251 is in a district court in Travis County or the county in which the offense occurred.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1420, Sec. 14.421(b), eff. Sept. 1, 2001.

Amended by:

Acts 2005, 79th Leg., Ch. 971 (H.B. 1767), Sec. 6, eff. September 1, 2005.

Sec. 801.506. PROHIBITED PRACTICES RELATING TO CERTAIN ENTITIES. (a) A sole proprietorship, partnership, or corporation may not engage in veterinary medicine unless the owner, each partner, or each shareholder, as appropriate, holds a license to practice veterinary medicine issued under this chapter.

(b) A corporation, organization, business trust, estate, trust, partnership, association, or other legal entity not owned exclusively by one or more persons licensed to practice veterinary medicine under this chapter may not engage in veterinary medicine.

(c) A veterinarian may not form or continue a partnership with a member of another profession or a person who is not a member of a profession if a part of the partnership employment consists of the practice of veterinary medicine.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999. Amended by Acts 2001, 77th Leg., ch. 1420, Sec. 14.421(c), eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 25, eff.

September 1, 2011.

Sec. 801.507. NONAPPLICABILITY OF DECEPTIVE TRADE PRACTICES-CONSUMER PROTECTION ACT. Subchapter E, Chapter 17, Business & Commerce Code, does not apply to a claim against a veterinarian for damages alleged to have resulted from veterinary malpractice or negligence.

Acts 1999, 76th Leg., ch. 388, Sec. 1, eff. Sept. 1, 1999.

Sec. 801.508. CEASE AND DESIST ORDER. The board or executive director may issue a cease and desist order upon determining that it is necessary to prevent a violation of this chapter, or of a rule adopted or order issued by the board.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 26, eff. September 1, 2005.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 26, eff. September 1, 2011.

Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 35, eff. September 1, 2025.

Sec. 801.509. ENFORCEMENT POLICY. The board shall adopt a formal policy to focus enforcement efforts toward investigating complaints.

Added by Acts 2005, 79th Leg., Ch. 27 (S.B. 407), Sec. 26, eff. September 1, 2005.

Sec. 801.510. ISSUANCE OF EMERGENCY ORDERS. (a) Upon determining that an emergency exists requiring immediate action to protect the public health and safety, the board or executive director may issue an emergency order to:

(1) suspend or revoke a license or other authorization issued under a program regulated by the board; or

(2) halt operation of an unsafe veterinary medical facility.

(b) The board or executive director may issue an emergency order with or without notice and hearing. If an emergency order is

issued under this section without a hearing, the board shall set the time and place for a hearing conducted by the State Office of Administrative Hearings to affirm, modify, or set aside the emergency order not later than the 17th day after the date the order was issued. The order shall be affirmed to the extent that reasonable cause existed to issue the order.

(c) A proceeding under this section is a contested case under Chapter 2001, Government Code.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. 2155), Sec. 36, eff. September 1, 2025.

SUBCHAPTER L. EQUINE DENTAL PROVIDER ADVISORY COMMITTEE

Sec. 801.551. EQUINE DENTAL PROVIDER ADVISORY COMMITTEE.

(a) The equine dental provider advisory committee is an informal advisory committee to the board and is not subject to Chapter 2110, Government Code.

(b) The advisory committee does not have any independent rulemaking authority but shall advise and assist the board in adopting rules relating to licensed equine dental providers.

(c) The board shall consult the advisory committee regarding matters relating to a disciplinary action that involves a licensed equine dental provider.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

Sec. 801.552. APPOINTMENT OF ADVISORY COMMITTEE. (a) The equine dental provider advisory committee is composed of three members appointed by the presiding officer of the board as follows:

(1) two members who are licensed equine dental providers, have resided in and engaged in the practice of smoothing or filing teeth by floating in this state for the five years immediately preceding the date of appointment, and are of good repute; and

(2) one veterinarian member who is active and in good standing and who supervises a licensed equine dental provider.

(b) Expired.

(c) Appointments to the advisory committee shall be made without regard to the race, color, disability, sex, religion, age, or national origin of the appointees.
Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

Sec. 801.553. TERMS; VACANCY. (a) Members of the equine dental provider advisory committee are appointed for staggered six-year terms. The terms of the members expire on February 1 of each odd-numbered year.

(b) If a vacancy occurs during a member's term, the presiding officer of the board shall appoint a new member to fill the unexpired term.

(c) An advisory committee member may not serve more than two consecutive full terms.
Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

Sec. 801.554. GROUNDS FOR REMOVAL. (a) It is a ground for removal from the equine dental provider advisory committee that a member:

(1) does not have at the time of appointment the qualifications required by Section 801.552;

(2) does not maintain during service on the advisory committee the qualifications required by Section 801.552; and

(3) cannot, because of illness or disability, discharge the member's duties for a substantial part of the member's term.

(b) The validity of an action of the advisory committee is not affected by the fact that it is taken when a ground for removal of an advisory committee member exists.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

Sec. 801.555. OFFICERS. The presiding officer of the board shall designate biennially an equine dental provider advisory committee member as the presiding officer of the advisory committee

to serve in that capacity at the will of the presiding officer of the board.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

Sec. 801.556. REIMBURSEMENT; COMPENSATION. An equine dental provider advisory committee member is not entitled to reimbursement for travel expenses or compensation.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

Sec. 801.557. MEETINGS. (a) The equine dental provider advisory committee shall meet at the call of the presiding officer of the board.

(b) A meeting may be held by telephone conference call.

Added by Acts 2011, 82nd Leg., R.S., Ch. 940 (H.B. 414), Sec. 27, eff. September 1, 2011.

SUBCHAPTER M. VETERINARY MEDICAL FACILITIES

Sec. 801.601. REGISTRATION OF VETERINARY MEDICAL FACILITIES REQUIRED. (a) Veterinary medicine, including veterinary medicine practiced remotely by electronic means, shall be practiced only in or from a veterinary medical facility that is registered with the board or that is exempted by rule from the registration requirement. Unless exempted by this section or by board rule adopted pursuant to this section, every individual facility must be registered with the board.

(b) Subsection (a) does not apply to a facility maintained or operated by the federal government.

(c) A mobile facility affiliated with a registered veterinary medical facility is exempt from separate registration if identified in the application for registration filed pursuant to this subchapter.

(d) The board may by rule provide exemptions to the registration requirement for facilities if it determines that imposing or enforcing the requirement:

- (1) is not cost-effective for the board;
- (2) is not feasible with current board resources or standards; or
- (3) will not substantially benefit or protect consumers.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 37, eff. September 1, 2026.

Sec. 801.602. REGISTRATION ELIGIBILITY AND APPLICATION.

(a) To register a veterinary medical facility, the business entity providing services at the facility shall submit the application provided by the board and pay the applicable fee established by the board pursuant to Section [801.154](#). The application must be signed by a person with authority to act on behalf of the entity.

(b) The facility shall, in its application for registration:

(1) indicate the type of business entity that provides services at the facility, and provide information regarding the owners, partners, and operators of the entity, including a management services organization that contracts with the facility, as required by board rule; and

(2) provide the names and license or registration numbers of all persons who provide services at the facility and are regulated by the board.

(c) An application under this section shall require the facility to designate a medical director. The designated medical director must:

(1) be licensed by the board as a veterinarian and remain in good standing;

(2) regularly practice veterinary medicine at or from the facility; and

(3) co-sign the application for registration; and

(4) agree to accept all correspondence from the board on behalf of the facility.

(d) A veterinary medical facility whose designated medical director ceases to be affiliated with the facility shall designate a new medical director within 30 days of the change.

(e) The term of a registration issued under this section and the process for renewal of a registration shall be provided by board rule.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 37, eff. September 1, 2026.

Sec. 801.603. STANDARDS FOR OPERATION OF VETERINARY MEDICAL FACILITIES. (a) The board shall adopt and enforce rules relating to standards of operation of veterinary medical facilities. The rules must include standards regarding:

- (1) safety and sanitation;
- (2) storage and security of pharmaceuticals and controlled substances;
- (3) patient care;
- (4) retention of documentation, including medical records, controlled substance logs, and employment records; and
- (5) compliance with other state laws related to health and safety.

(b) Rules adopted under Subsection (a) must distinguish between categories of veterinary facilities, including mobile facilities that are not affiliated with another registered veterinary facility, to ensure that appropriate standards are established for each category of facility.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 37, eff. September 1, 2026.

Sec. 801.604. SANCTIONS AND ADMINISTRATIVE PENALTIES. The owner or owners of a business entity that provides services at a veterinary medical facility, or a management services organization that provides services to a veterinary medical facility, shall be subject to administrative penalties, license sanctions, or both, if:

- (1) the facility does not hold a current registration;
- (2) the facility violates a standard adopted pursuant to Section [801.603](#);
- (3) facility personnel deny access to the board or its agents to conduct an inspection or investigation; or

(4) the facility fails to comply with a board order.

Added by Acts 2025, 89th Leg., R.S., Ch. 874 (S.B. [2155](#)), Sec. 37,
eff. September 1, 2026.